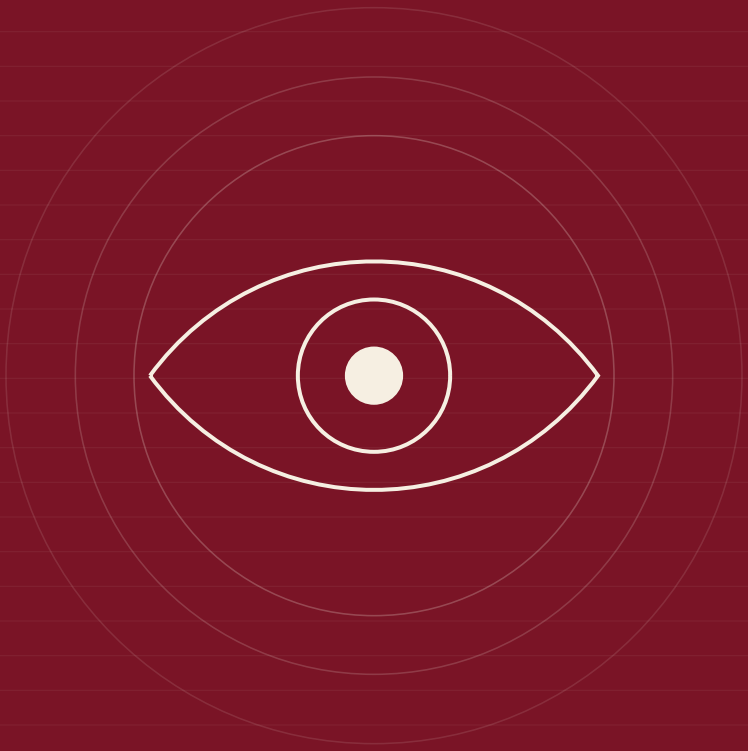
A DOCTORAL THESIS



PARTUS ANCILLAE

The Usufruct of the Womb, the Custody of Testimony, and the Infructuous Remainder

in Margaret Atwood's

The Handmaid's Tale

OCTOBER 2026

absurdum enim videbatur hominem in fructu esse

JUSTINIAN, *INSTITUTES* 2.1.37

Behold the handmaid of the Lord;
be it unto me according to thy word.

LUKE 1:38

Abstract

This dissertation contends that Margaret Atwood's *The Handmaid's Tale* (1985) is most exactly read neither as a theocratic dystopia in the Orwellian succession nor as a generic allegory of reproductive control, but as a *speculative jurisprudence of the fruit*: a sustained interrogation of the legal, theological, and economic operations by which a person is parsed into substance, use, and yield. Recovering a genealogy that runs from the Old Babylonian regulation of the fertile slave-woman (Codex Hammurabi §§144–147) and the adoption rite of Genesis 30, through the Roman controversy over the *partus ancillae*—whether the offspring of an enslaved woman may be counted among the *fructus* owed to a usufructuary—to the Virginia statute of 1662 by which the condition of the child was made to follow the womb, the study demonstrates that Gilead constitutes a *usufructuary order*. It vests bare title (*nuda proprietas*) in the state, assigns use to the Commander's household, and declares the child a fruit, thereby rescinding the very exception by which classical jurisprudence, in the formulation preserved in Justinian's *Institutes*, held it absurd that a human being should be counted among the fruits of things.

The dissertation then shows that the novel's paratextual coda, the "Historical Notes," transposes this structure from the womb to the voice. Offred's oral testimony is transcribed, sequenced, titled, and authenticated by male scholars who name its issue as Rachel named the sons of Bilhah, constituting a *testimonial usufruct* that the novel at once enacts and indicts. Read alongside the originators of the traditions Atwood inherits and contests—Winthrop and Perry Miller, Weber, Engels and Marx, Wollstonecraft and Mill, Beauvoir, Arendt, Foucault, Agamben, Pateman, Rubin, Irigaray, Spillers, and Federici—and against comparative works of feminist and humanist imagination from Chaucer's Wife of Bath to Morrison's *Beloved* and Ishiguro's *Never Let Me Go*, the study advances an original thesis: that humanism's classical defence of dignity, which exempts the human being from the category of fruit, has historically drawn that exemption *across* the reproductive female body, rendering that body the boundary-object of the humanist tradition.

Against both Gilead's ontology of yield and humanism's compromised exception, the novel articulates—in its puns, its withheld name, its convulsive laughter, its useless luxuries, and its address to an absent listener—an ethics of the *infructuous remainder*, theorized here as *natality without issue*: an Arendtian capacity for beginning decoupled from parturition, productivity, and archival capture. A coda assesses the novel's racial elisions, its afterlives in protest and commerce, and its bearing on the contemporary jurisprudence of gestational surrogacy.

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INTRODUCTION

The Question of the Fruit

I.1 The Salutation Taken Literally

Gilead's women greet one another with a benediction upon "the fruit," answered by a petition that the Lord may open. The formula abbreviates Elizabeth's salutation to Mary at the Visitation—*benedictus fructus ventris tui* (Luke 1:42)—and its devotional pedigree is precisely what conceals its juridical content. *Fructus* is not only a liturgical metaphor; it is a term of art in Roman private law, denoting the revenue a thing yields without diminution of its substance. *Venter*, the womb whose fruit Elizabeth blesses, is the very noun on which the jurists built the rule that the status of the child follows the mother (*partus sequitur ventrem*). The Handmaid's title compounds the overdetermination: *ancilla*, the word with which Mary consents at the Annunciation (*ecce ancilla Domini*, Luke 1:38), is the word by which Roman law designated the enslaved woman whose offspring, the *partus ancillae*, generated the oldest recorded controversy in the jurisprudence of usufruct. Gilead's liturgy thus fuses, within a single Latin lexicon, the vocabulary of sacred consent and the vocabulary of owned increase. This dissertation takes that fusion literally.

The argument is that *The Handmaid's Tale* stages, with a rigor criticism has not yet registered, a jurisprudence of the fruit: a theory of how persons are disaggregated into substance (*res*), use (*usus*), and yield (*fructus*), and of how that disaggregation is legitimated by appeal to scripture, to nature, to demography, and—most disquietingly—to the dignity of the human being. Gilead is accordingly reconceived as a *usufructuary order*. It does not simply own women, as the analogy of chattel slavery suggests, nor merely discipline them, as a Foucauldian vocabulary implies. It distributes the incidents of property across distinct parties: bare title to the state, which designates fertile women national resources; use to the Commander's household for a fixed posting; the fruit to the Wife, on whose knees the child is legally born; and to the Handmaid the

condition of a thing whose substance must be preserved (*salva rerum substantia*) precisely so that its yield may be repeatedly taken.

I.2 Thesis

Four propositions organize the study. First, Gilead's institutions reanimate a juridical lineage—Old Babylonian, Hurrian, Israelite, Roman, and Anglo-American—in which the fertile bondwoman is a recurrent legal problem, and in which the decisive question is not who possesses her body but who holds title to its issue. Second, the classical humanist answer to that question, the Roman refusal to count a human being among fruits, did not emancipate the child; it reclassified the child as capital. Humanism's defence of dignity was thereby drawn *across* the reproductive female body, which becomes the boundary-object of the humanist tradition: the site at which the line between person and yield is repeatedly drawn, contested, and redrawn. Third, the novel's formal architecture—a woman's oral testimony followed by a male academic's annotated reconstruction of it—transposes the usufructuary structure from womb to voice, so that the "Historical Notes" constitute a *testimonial usufruct* rather than a satiric afterword. Fourth, against Gilead's ontology of yield and humanism's compromised exception alike, the novel articulates an ethics of the *infructuous remainder*: an account of the person grounded in what cannot be harvested, theorized in the final chapter as *natality without issue*.

I.3 The Three Epigraphs as Method

Atwood's three epigraphs furnish the method. The first, Genesis 30:1–3, in which Rachel offers her maid Bilhah to Jacob that she may "bear upon my knees," is a text of *precedent*: it supplies Gilead with scriptural warrant and this study with its first juridical archive. The second, drawn from Swift's *A Modest Proposal* (1729), is a text of *yield*: Swift's projector computes the kingdom's "breeders" and prices their infants as provisions, satirizing an economic reason that has already converted generation into revenue. The third, a Sufi proverb observing that the desert posts no prohibition against eating stones, is a text of *prohibition*: it intimates, as Freud would argue in *Totem und Tabu* (1913), that law forbids only what is desired, so that every Gileadean interdiction is a confession. To precedent, yield, and prohibition the dissertation adds a fourth axis that the novel supplies in its own coda: *testimony*.

I.4 State of the Field and Contribution

Four decades of criticism have fixed the novel's coordinates without assembling them into a single theory. Early readings placed it in the dystopian tradition (Malak 1987; Ketterer 1989) and within Atwood's revisionary fairy-tale poetics (Wilson 1993). Feminist readings debated whether its satire of cultural feminism amounted to critique or to backlash (Neuman 2006). Narratological readings figured Offred as a Scheherazade whose storytelling defers death (Stein 1991) and the "Historical Notes" as a satire of masculinist historiography (Davidson 1988; Grace 1998). Utopian studies reclassified the work as a "critical dystopia" whose open ending preserves a utopian impulse (Moylan 2000; Baccolini and Moylan 2003). More recent scholarship, energized by the Hulu serial (2017–2025) and the sequel *The Testaments* (2019), has subjected the novel's borrowing of the slave narrative, and its marginalization of Black women, to intersectional critique. Absent from this literature is an account of the *juridical form* binding these strands: the single logic by which the regime, the narrative, and the archive each separate a woman from her issue. This study supplies that account and derives from it a positive philosophical proposal.

I.5 Method

Atwood repeatedly stated that she admitted into Gilead nothing human beings had not already done somewhere. The novel was assembled from a file of clippings documenting Puritan New England; Decree 770 (1966), by which Nicolae Ceaușescu's government in Romania banned abortion for most women, restricted contraception, and later subjected women workers to compulsory gynaecological examinations, a regime under which thousands of women died from illegal abortions before its repeal in 1989; the Argentine military dictatorship (1976–83), which held pregnant political prisoners in clandestine detention centres until they gave birth, killed many of them, and handed their infants to military and allied families under false identities, crimes the Abuelas de Plaza de Mayo have spent decades documenting, identifying more than 130 of an estimated 500 stolen children; the SS Lebensborn program founded under Heinrich Himmler in 1935, which ran maternity homes for births deemed racially valuable and in wartime took part in abducting children from occupied countries for Germanization; the Islamic Republic of Iran's suspension of the Family Protection Law in 1979, its removal of women from the judiciary, and its imposition of compulsory veiling in the early 1980s; and the rhetoric of the American New Right. Of these, the Argentine case is the closest real precedent for the order this study describes: the bearer kept alive until delivery, the child transferred as fruit. This principle authorizes a genealogical method in Foucault's sense—a history not of origins but of descents and emergences—and obliges us to read the novel as an archive of precedents rather than an invention ex nihilo.

A second methodological decision began as a constraint and was then adopted as a principle. Because the novel remains in copyright, quotation from it is kept to a minimum and Offred's words are paraphrased rather than reproduced. The constraint also suits the argument: if the archive's appropriation of testimony repeats the regime's appropriation of issue, a reading that declines to reproduce the witness's words as specimens practises what it argues. Pre-modern legal, scriptural, and philosophical sources, by contrast, are cited in the original wherever their wording carries the argument; the law is quoted, the witness is not.

I.6 Architecture

Part One (Precedent) reconstructs the juridical genealogy in its biblical and Mesopotamian (Chapter 1), Roman and Anglo-American (Chapter 2), and Puritan (Chapter 3) strata. Part Two (Yield) treats the political economy of reproduction (Chapter 4) and the kinship economy of exchange (Chapter 5). Part Three (Prohibition) examines biopolitical sovereignty (Chapter 6), the manufacture of gender (Chapter 7), and the dialectic of law and desire (Chapter 8). Part Four (Testimony) addresses the onomastics of possession (Chapter 9) and the "Historical Notes" (Chapter 10). Part Five (The Remainder) situates the novel comparatively (Chapter 11) and formulates the theory of natality without issue (Chapter 12). A coda follows the fruit into the novel's afterlives.

PART ONE

Precedent

1 *Bilhah's Silence*

2 *Partus Ancillae*

3 *Covenant, Jeremiad, Witch*



CHAPTER ONE

Bilhah's Silence

The Ancient Law of the Surrogate Bondwoman

1

1.1 Knees, Names, and Title

The Ceremony is a staged exegesis of Genesis 30:1–8. Rachel's cry—"Give me children, or else I die" (30:1)—issues in a juridical proposal: "Behold my maid Bilhah, go in unto her; and she shall bear upon my knees, that I may also have children by her" (30:3). The phrase "bear upon my knees" is no pious ornament but a formula of legal acknowledgement. Elsewhere in Genesis the knees are the site at which descent is received and ratified: Joseph brings Ephraim and Manasseh "from between his knees" before Jacob adopts them (48:12), and the children of Machir are "brought up upon Joseph's knees" (50:23). Commentators since the comparative school have read the gesture as a rite of adoption transferring filiation from bearer to mistress. The Ceremony is the Commander's monthly rape of the Handmaid, compelled by the state under threat of the Colonies and performed while she lies between the Wife's thighs, the Wife holding her hands. Its choreography literalizes the rite: it is a rape staged as a conveyance.

Two further features of Genesis 30 govern the novel. First, Rachel names the children: Dan, "God hath judged me," and Naphtali, "With great wrestlings have I wrestled with my sister" (30:6, 8). The names memorialize the mistress's rivalry with her sister and say nothing of the woman who bore them; naming is the act by which title is asserted over issue. Second, Bilhah never speaks. She is given, goes in, conceives, bears, and vanishes, resurfacing only in a single verse recording that Reuben, Jacob's eldest son, lay with her (35:22). The text gives her no word and records no consent, and when Jacob later curses Reuben for the act, the wrong he names is done to himself: "thou wentest up to thy father's bed; then defiledst thou it" (49:4). The offence is entered against the owner's bed, not against the woman in it. Bilhah, like her counterpart Zilpah, is wholly voiceless. *The Handmaid's Tale* is, at its most literal level, Bilhah's tale: the restitution of

speech to the silent bearer of the patriarchal narrative. That Gilead names its training institution after the wives—the Rachel and Leah Center—rather than after the handmaids records the regime's point of view with grammatical exactness: the institution that manufactures Bilhahs speaks in the name of the title-holders.

1.2 Hammurabi and Nuzi: The Precarity of Fertile Bondage

The arrangement of Genesis 30 belongs to a legal culture older than Israel. The Codex Hammurabi (c. 1754 BCE) regulates the case of a *nadītum*, a priestess-wife not ordinarily expected to bear, who gives her husband a slave-woman (§§144–147). If the slave-woman bears children and then presumes to rank with her mistress, the mistress may not sell her, but may set the slave-mark (*abbuttum*) upon her and reckon her among the slave-women (§146); if she has borne no children, the mistress may sell her (§147). Marriage contracts from Nuzi (fifteenth to fourteenth centuries BCE), adduced by E. A. Speiser in comparative readings of the patriarchal narratives—readings contested by Thomas L. Thompson (1974) and John Van Seters (1975)—stipulate that a barren wife shall furnish her husband a woman from the Lullu lands while herself retaining authority over the offspring.

Three principles emerge, and Gilead reproduces each. Fertility confers on the bondwoman a status at once elevated and revocable: Hammurabi protects the fruitful slave from sale yet authorizes her re-marking should she forget her place, as Gilead honours the Handmaid as sacred vessel yet disciplines any presumption with the Aunts' electric prods. Title to the offspring vests in the wife, not the bearer. And infertility converts the bondwoman back into a commodity: the licence to sell in §147 becomes Gilead's rule of three postings, after which an unfruitful Handmaid is declared an Unwoman and consigned to the Colonies, while one who has borne a child is in principle shielded from that fate, precisely the protective clause of §146. Atwood had no need to know these tablets for her novel to be governed by their logic; the logic is the precedent.

1.3 Hagar, El Roi, and the Pauline Allegory

Gilead's choice of Rachel and Bilhah rather than Sarai and Hagar (Genesis 16; 21) as its warrant is itself telling, for Hagar is the bondwoman who resists. Having conceived, she regards her mistress with contempt (16:4); afflicted, she flees; and in the wilderness she becomes what interpreters often describe as the only figure in the Hebrew Bible to bestow a name upon God: *El Roi*, "Thou God seest me" (16:13). Hagar's seeing God is a counter-sovereign witness who recognizes the fugitive her owners would recapture. Gilead's surveillant valediction, which commends each departing subject to the divine Eye, appropriates Hagar's theology of the seeing God and inverts it: the gaze that once acknowledged the runaway now polices her.

The Christian tradition had already sublimated Hagar. In Galatians 4:22–31 Paul allegorizes the two women as two covenants: Hagar "is mount Sinai in Arabia, and answereth to Jerusalem which now is, and is in bondage with her children," while Sarah is the Jerusalem above, "free, which is the mother of us all"; the passage culminates in the verdict "Cast out the bondwoman and her son" (4:25–26, 30; cf. Gen. 21:10). Typology here converts an enslaved mother into the sign of what grace supersedes. Gilead performs what may be called a *regressive typology*: rather than reading Old Testament institutions as types fulfilled and abrogated in Christ, it restores the type as positive law. Womanist theology supplies the decisive counter-reading. Delores S. Williams's *Sisters in the Wilderness* (1993) reads Hagar as the paradigm of Black women's "coerced surrogacy" under slavery—substitution for white women in labour, nurture, and sexual service—and of the nominally voluntary but socially compelled surrogacy that followed emancipation. The genealogy Gilead claims runs, unacknowledged, through the bodies of women its own racial program expels from the reproductive order (Chapter 5).

1.4 Galeed, Mizpah, and the Shibboleth

The regime's name is a palimpsest of witness, surveillance, and policed speech. In Genesis 31 Jacob and Laban raise a cairn called Galeed, "the heap of witness," and Mizpah, the watchtower, pronouncing: "The LORD watch between me and thee, when we are absent one from another. If thou shalt afflict my daughters, or if thou shalt take other wives beside my daughters, no man is with us; see, God is witness betwixt me and thee" (31:49–50). Gilead is thus named after a covenant between men whose explicit terms forbid the affliction of daughters and the taking of additional wives—the two acts in which the Handmaid system consists. The same chapter records Rachel's theft of her father's household gods, hidden in the camel's furniture while she pleads that "the custom of women is upon me" (31:19, 34–35): the menstrual taboo weaponized as cover for contraband. The Rachel whom Gilead canonizes in chapter 30 as the barren wife who instrumentalizes her maid is, one chapter later, a smuggler who turns the purity code against patriarchal search.

The toponym accrues further strata. Jephthah, who sacrificed his daughter to a vow, was a Gileadite (Judges 11:1, 30–40), and it was Gileadites who held the fords of the Jordan and slew every fugitive unable to pronounce "Shibboleth" (12:5–6). Gilead's fixed greetings function exactly as shibboleths, formulas whose correct utterance certifies loyalty, and the resistance answers with a counter-shibboleth, "Mayday" (*m'aidez*), exchanged between Offred and Ofglen in the cautious idiom of the password. Jeremiah's lament—"Is there no balm in Gilead; is there no physician there? why then is not the health of the daughter of my people recovered?" (8:22)—concerns, precisely, the health of daughters; the African American spiritual that answers the prophet's question in the affirmative converted lament into consolation under slavery; Moira's profane substitution of a bomb for the balm returns the word to insurgency. To say "Gilead" is to speak at once of a witness-heap, a watchtower, a sacrificed daughter, a lethal password, a pharmacopoeia, a spiritual of the enslaved, and a joke of the resistance.

1.5 Ecce Ancilla Domini: The Annunciation Without a Fiat

The Handmaid's title descends not from Genesis but from Luke. "Behold the handmaid of the Lord; be it unto me according to thy word" (1:38): Mary's *fiat* is the paradigmatic female consent to a divinely willed conception, and Aquinas holds that the Annunciation was fitting precisely so that the Virgin's consent might be sought in the place of the whole of human nature (*Summa Theologiae* III, q. 30, a. 1). The Ceremony is the Annunciation with the fiat subtracted. It is a rape performed "according to the word"—the Commander reads Genesis aloud before the act—in which the woman's consent is not merely unsolicited but would constitute a transgression, since participation and desire are forbidden her. Gilead inherits the Marian title while abolishing the one element Catholic theology deemed indispensable to it.

Luke's handmaid, moreover, speaks. Her canticle, the *Magnificat* (1:46–55), praises the God who "hath regarded the low estate of his handmaiden" and who "hath put down the mighty from their seats, and exalted them of low degree," a text that liberation theologians from Gustavo Gutiérrez onward have read as a manifesto of reversal. Scripture's canonical handmaid's tale is a song of dethronement. Gilead, which locks the Bible away from women, activates the silent Bilhah of Genesis 30 and suppresses every scriptural handmaid who sees (Hagar), steals (Rachel), consents (Mary), or sings (the *Magnificat*). Atwood's title quietly retrieves that suppressed counter-archive: the novel is the *Magnificat* of a handmaid denied both the fiat and the triumph.

CHAPTER TWO

Partus Ancillae

Usufruct, the Humanist Exception, and the Grammar of the Womb

2.1 Disaggregated Property

Roman law knew that ownership could be decomposed. Beside full *dominium* it recognized the usufruct, defined by Paul and repeated in Justinian's *Institutes* as *ius alienis rebus utendi fruendi salva rerum substantia*: "the right of using and enjoying the things of another, their substance being preserved" (D. 7.1.1; Inst. 2.4 pr.). The owner, stripped of use and fruits, retained only *nuda proprietas*, bare title. Fruits were the periodic yields a thing produces without consuming its capital—crops, wool, milk, the young of flocks—which passed to the usufructuary upon their gathering (*perceptio*). The institution was designed above all for the household: it allowed a testator to provide for a widow by granting her the yield of an estate whose title descended to the heirs. Gilead is a usufruct writ large, as the following correspondence sets out.

Incident of property	Roman term	Gileadean bearer
Bare title	*nuda proprietas*	The state, which designates fertile women national resources
Use	*usus*	The Commander's household, for a two-year posting
Fruit	*fructus*	The child, conferred upon the Wife
Preserved substance	*salva rerum substantia*	The Handmaid's reproductive capacity, and nothing else
Thing in usufruct	*res*	The Handmaid
Title of the use	the usufructuary's name	The patronymic: Of-Fred, Of-Glen, Of-Warren

Two details secure the analogy. The Handmaid's patronymic changes with her posting: the name, as Chapter 9 shows, is the title of the usufruct, not of the person. And the Aunts' doctrine, voiced after they punish Moira's first escape by beating her feet with steel cables until she cannot walk, that hands and feet are inessential to the regime's purposes, is an exegesis of the clause *salva rerum substantia*. The substance to be preserved has been redefined as the reproductive apparatus alone; the rest of the body is, juridically, surplus.

2.2 The Oldest Question

Within this law of fruits one question was famously contested. Cicero reports in *De Finibus* (1.12) that the leading jurists of the second century BCE, Publius Mucius Scaevola and Manius Manilius, debated whether the offspring of a slave-woman (*partus ancillae*) should be reckoned among the fruits, and that Marcus Junius Brutus dissented from them. Ulpian records the outcome: it was an old question whether offspring belonged to the usufructuary, but the opinion of Brutus prevailed, that the usufructuary has no place in it, *neque enim in fructu hominis homo esse potest*—"for a human being cannot be in the fruit of a human being" (D. 7.1.68 pr.). Justinian's *Institutes* give the canonical rationale: *partus vero ancillae in fructu non est, itaque ad dominum proprietatis pertinet: absurdum enim videbatur hominem in fructu esse, cum omnes fructus rerum natura hominum gratia comparaverit*—"the offspring of a slave-woman is not counted as fruit, and so belongs to the owner of the property; for it seemed absurd that a human being should be counted as fruit, since nature has provided all the fruits of things for the sake of human beings" (Inst. 2.1.37). The young of cattle are fruit; the child of an enslaved woman is not.

2.3 The Humanist Exception and Its Price

Here, in miniature, is the structure this dissertation calls the *humanist exception*. Its premise is unimpeachably humanist, indeed Stoic: the world's fruits exist for the sake of human beings, so a human being cannot be one of them (cf. Cicero, *De Natura Deorum* 2.154–62). Its consequence, however, is reclassification rather than emancipation. Declared too human to be fruit, the child is transferred from the usufructuary to the owner, from revenue to capital. Dignity relocates the child within property; it does not release it. And the mother is not mentioned at all. The exception's beneficiaries are the child-as-human and the owner-as-human; the *ancilla* remains *res*. The line between person and yield is drawn across her body, passing between her—a thing whose increase is disputed—and her child, a human being who, precisely as human, is capital.

The reclassification was no scholastic curiosity. In 1820 Thomas Jefferson, author of the most celebrated modern affirmation of human equality, wrote to his son-in-law John Wayles Eppes: "I consider a woman who brings a child every two years as more profitable than the best man of the farm. what she produces is an addition to the capital, while his labors disappear in mere consumption." Jefferson's arithmetic reproduces Brutus's taxonomy with an accountant's precision: the enslaved woman's issue is not fruit to be consumed but an addition to the capital. The arithmetic ran through his own household. John Wayles, Jefferson's father-in-law and the letter's recipient's grandfather and namesake, fathered children with Betty Hemings, a woman he enslaved; under the rule examined below, those children, Sally Hemings among them, were born enslaved and passed to the Jeffersons through his daughter's inheritance. Jefferson in turn, on the evidence most historians now accept, fathered six children with Sally Hemings, whom he owned and who was a teenager when the relationship began; they were born enslaved to their own father. Jennifer L. Morgan's *Laboring Women* (2004) and her essay on *partus sequitur ventrem* (2018), with Alys Eve Weinbaum's *The Afterlife of Reproductive Slavery* (2019), have shown that this "slave episteme" organized the reproduction of racial capitalism in the Atlantic world and persists in contemporary biocapital. The humanist exception and the accumulation of human capital through women's wombs are not opposites; the former is the latter's juridical form.

2.4 Partus Sequitur Ventrem: From the Digest to Virginia, 1662

Roman law also furnished the rule of descent. By the *ius gentium*, Gaius explains, a child born of a slave-woman and a free man is born a slave (*Inst.* 1.82); Ulpian declares it a law of nature that one born outside lawful marriage follows the mother (D. 1.5.24). Later jurists condensed these texts into the maxim *partus sequitur ventrem*. In December 1662, after Elizabeth Key, daughter of an enslaved African woman and an English planter, had won her freedom by invoking her father's status, the Virginia General Assembly enacted that "all children borne in this country shall be held bond or free only according to the condition of the mother" (Act XII). The English rule that traced unfree status through the father was set aside for the colony, and the enslaved woman's womb became the reproductive engine of hereditary slavery.

Hortense Spillers's "Mama's Baby, Papa's Maybe: An American Grammar Book" (1987) anatomizes the resulting order. Under *partus sequitur ventrem* the captive mother transmits non-freedom while the father—frequently the enslaver, whose sexual coercion of the women he held the law did not treat as a crime—is legally effaced, and the rule converts that coercion into an addition to his capital; kinship is denied recognition; the captive body is reduced to "flesh," anterior to the gendered "body" of the free. This grammar, Spillers argues, is the buried syntax of American gender itself. The law's refusal to see that coercion was explicit. In 1855 Missouri tried Celia, an enslaved woman bought at fourteen by Robert Newsom, who raped her repeatedly over five years; when she killed him, the court refused to instruct the jury that the law protecting "any woman" against forcible violation extended to her, and she was hanged. Chapter 5 will show that Gilead inverts this grammar with uncanny symmetry.

2.5 Gilead's Answer

Gilead reopens the question Brutus closed and answers it with Scaevola and Manilius. Its greeting declares the child a fruit; its law assigns that fruit to the household that holds the use, not to the state that holds title. Yet Gilead's fruit is neither the revenue of the Roman usufructuary nor the capital of the Virginian planter. It is a status good: the visible sign of a household's standing and, as Chapter 3 argues, of its election. Gilead's reproductive economy is patrimonial and theological rather than capitalist; the child is not accumulated but displayed. Its rule of descent follows neither the womb nor the father's seed but the house—*partus sequitur domum*. The Handmaid's maternity transmits nothing: no status, no name, no claim. Where slave law made the mother's womb the conduit of dispossession, Gilead makes it a conduit *simpliciter*, a channel through which issue passes untouched by its passage.

2.6 Kant's Right to Persons Akin to Things

The humanist exception recurs at the summit of Enlightenment moral philosophy. Kant's Formula of Humanity commands that humanity be treated *jederzeit zugleich als Zweck, niemals bloß als Mittel*, always at the same time as an end and never merely as a means (*Grundlegung*, AA 4:429). The adverb *bloß* concedes that persons may be used, provided they are not only used, and Gilead inhabits that concession: the Handmaid is employed as a vessel while honoured, in the Aunts' rhetoric, as precious and sacred. In the *Rechtslehre* (1797) Kant went further. To accommodate the household he devised a hybrid category, *das auf dingliche Art persönliche Recht*, a right to a person akin to a right to a thing, defined as the possession of an external object *as a thing* together with its use *as a person* (§22). Marriage is the union of two persons of different sexes for the lifelong reciprocal possession of their sexual attributes (§24); parents acquire children, and the master of the house acquires servants (*Gesinde*), under the same right (§§28–30). Kant's justification is reciprocity: the sexual use of another degrades that person into a thing unless each, in acquiring the other, is acquired in turn and so restored to personality.

Subtract the reciprocity and Kant's category becomes the constitution of Gilead. The Commander possesses the Handmaid's sexual attributes without being possessed—in plain terms, he rapes her under a title the law calls a right; the Wife acquires the child as parent without bearing it; the Handmaid is *Gesinde*. The device by which the Enlightenment reconciled dignity with domestic possession becomes, once its single safeguard is removed, the legal

form of the regime. The lesson for Part Five is already visible: a humanism that secures dignity by exception—the child is not fruit; the spouse is possessed, but reciprocally—leaves intact the grammar of possession it qualifies, and that grammar remains available for repossession.

CHAPTER THREE

Covenant, Jeremiad, Witch

The Puritan Stratum

3.1 The Dedication as Diptych

The novel is dedicated to Mary Webster and Perry Miller. Webster, of Hadley, Massachusetts, was tried for witchcraft and acquitted by a Boston court in 1683; soon afterwards a party of townsmen, blaming her for the mortal illness of a local notable, Philip Smith, hanged her and left her for dead, and she survived. Cotton Mather recorded the episode in *Magnalia Christi Americana* (1702). Atwood's family lore numbers "Half-Hanged Mary" among her ancestors, and the poem of that title in *Morning in the Burned House* (1995) gives her night on the rope a voice. Miller (1905–1963), whose *The New England Mind* (1939, 1953) and *Errand into the Wilderness* (1956) reconstituted Puritanism as a system of thought, dominated American literary history at Harvard when Atwood pursued graduate study at Radcliffe in the early 1960s.

The dedication thus pairs the victim of Puritan theocracy with its greatest modern scholar: a diptych of witness and archive that prefigures, in miniature, the novel's own structure of testimony and Symposium. The novel's geography completes the figure. Gilead's seat is Cambridge, Massachusetts; the college founded in 1636 to furnish a learned ministry becomes the theocracy's headquarters; its wall displays the hanged; its great library houses the Eyes. The university and the scaffold coincide, and the novel will end, two centuries later, at another university.

3.2 Winthrop's Two Liberties and Aunt Lydia's Two Freedoms

John Winthrop's lay sermon "A Model of Christian Charity" (1630) supplies Gilead's optical theology: "we shall be as a city upon a hill. The eyes of all people are upon us." Gilead's secret police are those eyes, institutionalized. More decisive is Winthrop's "Little Speech on Liberty" (1645), which distinguishes a natural liberty, "a liberty to evil as well as to good," from a civil or federal liberty "to that only which is good, just, and honest," and illustrates the latter by the wife, who chooses her husband, "yet, being so chosen, he is her lord, and she is to be subject to him, yet in a way of liberty, not of bondage; and a true wife accounts her subjection her honor and freedom." Aunt Lydia's celebrated distinction between a "freedom to," which the old society indulged to the point of anarchy, and a "freedom from," which Gilead bestows, is Winthrop's distinction secularized and recast as security: liberty as protected subjection.

Isaiah Berlin's "Two Concepts of Liberty" (1958) is routinely invoked here, but Lydia's taxonomy maps onto neither of Berlin's concepts. Her "freedom from" is not negative liberty, freedom from interference, but its inversion: protection purchased by total interference, the Hobbesian exchange of every right for security (*Leviathan*, 1651), imposed on women alone. The neo-Roman theory of liberty restated by Quentin Skinner (*Liberty before Liberalism*, 1998) and Philip Pettit (*Republicanism*, 1997) clarifies what is at stake. Liberty is non-domination; the slave of a kindly master is unfree because she lives at his mercy, *in potestate domini*, whether or not he chooses to interfere. The Commander's indulgences—the forbidden Scrabble, the hand lotion, the superannuated fashion magazines—are the paradigm of benevolent domination: they demonstrate rather than mitigate unfreedom. Because the neo-Roman theory derives from the Roman law of slavery, it returns us to Chapter 2. Gilead is legible as a republic of masters whose liberty is measured by others' subjection.

3.3 The Jeremiad as State Form

Sacvan Bercovitch's *The American Jeremiad* (1978) argued that the Puritan political sermon lamented declension in order to reaffirm the covenant, converting crisis into consensus and anxiety into mission. Gilead's legitimating discourse is jeremiadic through and through. Declining birth rates, pornography, sexual violence, ecological contamination, and the loosening of marriage are read not as social facts but as covenantal breach whose remedy is return. Miller's declension thesis, which narrated New England as a fall from founding piety, becomes the regime's official historiography. Atwood's novel is itself a jeremiad, a warning addressed to a community in danger, but a counter-jeremiad that turns the form's admonitory energy against the covenant it would restore. Two jeremiads confront each other: Gilead's, which says *return*, and Atwood's, which says *beware the return*.

Gilead's hermeneutic is Puritan typology run in reverse. Where Mather's providential historiography read New England's events as antitypes fulfilling biblical types, Gilead reads biblical types as statutes awaiting enactment. Regressive typology (Chapter 1) is the jeremiad's juridical instrument.

3.4 Election and Fertility: Reproductive Calvinism

Max Weber's *Die protestantische Ethik und der Geist des Kapitalismus* (1904–05) traced to the doctrine of predestination an anxiety about election that sought assurance in signs: methodical worldly success functioned not as the cause of grace but as its evidence. Gilead transfers the sign of election from the ledger to the womb. A household's fruitfulness is the visible evidence of divine favour; sterility, attributed always to women since male sterility is legally unspeakable, is the mark of reprobation. This *reproductive Calvinism* explains the theology of the Birth Day, at which the community assembles to witness a sign of grace, and the Wives' competitive anxiety, which is soteriological as well as social. It also explains the regime's hostility to reproductive technology: an engineered conception would be a work, not a sign, and grace must appear given rather than made. Weber's closing image of the *stahlhartes Gehäuse*—the "iron cage," or shell hard as steel, that the ascetic spirit bequeaths its heirs—finds its textile incarnation in the Handmaid's habit: a cage worn as a garment, its white wings a pair of blinkers.

3.5 Witch, Midwife, Handmaid

Silvia Federici's *Caliban and the Witch* (2004) argued that the European and colonial witch-hunts, contemporaneous with a demographic crisis and mercantilist population policy, destroyed women's control over reproduction—contraceptive knowledge, abortion, midwifery—and so effected a primitive accumulation of the female body as a machine for producing labour-power. Gilead, born of a demographic crisis, repeats the sequence: the criminalization of abortion providers, whose bodies hang on the Wall; the abolition of women's property; the conversion of the female body into a public resource. The dedication to Mary Webster binds the novel to this genealogy directly, and the women's Salvaging, at which women are hanged before an assembly of women, replays the New England gallows. That the novel anticipates Federici by two decades attests a shared matrix in the Wages for Housework campaigns of the 1970s (Mariarosa Dalla Costa, Selma James, Federici) and in Maria Mies's *Patriarchy and Accumulation on a World Scale* (1986).

Gilead's genius, however, is not to abolish women's reproductive knowledge but to impersonate it. The Birth Day excludes physicians, refuses anaesthesia, seats the labouring woman on a birthing stool, and surrounds her with chanting women. The iconography of the 1970s natural-childbirth and self-help health movements—*Our Bodies, Ourselves* (1970/1973), Ina May Gaskin's *Spiritual Midwifery* (1975)—is conscripted to a theology of pain: "in sorrow thou shalt bring forth children" (Gen. 3:16). The witch-hunt's victim, the midwife, returns as the regime's ritual officiant.

3.6 The Scarlet Letter

Hawthorne's *The Scarlet Letter* (1850), set in the Boston of Winthrop's generation, is the indispensable American intertext. Hester Prynne's scarlet A, embroidered by her own hand, transforms a mark of shame into an artwork whose meaning drifts in the community's eyes from Adultery toward Able. The Handmaid's red habit is a generalized scarlet letter that marks sexual function and stigmatizes it at once: the colour of menstrual blood, of fertility, of sin, of the woman of Revelation "arrayed in purple and scarlet colour" (17:4). Hester's needle and Offred's voice are cognate instruments of art under constraint. Hawthorne's frame, "The Custom-House," in which a male surveyor discovers the faded letter and an earlier surveyor's manuscript in an upper storey, anticipates the "Historical Notes" so precisely that Chapter 10 will read Pieixoto as Hawthorne's surveyor become professor.

PART TWO

Yield

4 *Breeders*
5 *The Traffic in Handmaids*

II

CHAPTER FOUR

Breeders

Swift, Demography, and the Political Economy of the Womb

4

4.1 The Projector's Arithmetic

Swift's projector arrives at his proposal, as the passage Atwood selects for her epigraph confesses, after "having been wearied out for many years with offering vain, idle, visionary thoughts, and at length utterly despairing of success." He then computes. Of a population reckoned at a million and a half souls, some two hundred thousand couples have wives who are "breeders"; deducting those able to maintain their children and those whose infants miscarry or die, there remain a hundred and twenty thousand children born annually to the poor, who at a year old may be sold to persons of quality as "a most delicious nourishing and wholesome food." The target is the political arithmetic of William Petty (*Political Arithmetick*, 1690), which had begun to value human beings as stock, and the mercantilist axiom that people are the riches of a nation. Swift's satire literalizes the metaphor of yield until it becomes cannibalism.

Atwood's choice of Swift positions Gilead as a modest proposal executed: the satirist's *reductio* enacted as policy. The Sons of Jacob, whose think tanks the "Historical Notes" credit with designing the regime, are projectors in Swift's precise sense, authors of schemes that resolve a social crisis by reclassifying human beings as resources. Swift's word for the fertile wife names the Handmaid's function two and a half centuries before Gilead institutionalizes it. And the epigraph's emphasis on the projector's despair is diagnostic: Gilead presents itself as the sober alternative to exhausted, "visionary" liberal remedies. The satirical tradition teaches that the most monstrous proposals arrive in the costume of realism.

4.2 Demography as Theodicy

Gilead's founding crisis is a collapse of fertility whose causes the "Historical Notes" enumerate with clinical indifference: chemical and radioactive contamination, leaking reactors, toxic waste, the residues of chemical and biological weapons, sexually transmitted epidemics, and the voluntary limitation of births. The regime's master stroke is to convert a technological and ecological catastrophe into a moral one. Infertility becomes punishment; the cure is repentance; demography becomes theodicy. Rachel Carson's *Silent Spring* (1962), whose title named a world in which pesticides had stilled birdsong by poisoning reproduction itself, is the novel's unacknowledged ecological precursor: Gilead's empty cradles are the silent spring of the species.

Ecofeminist theory—Françoise d'Eaubonne's *Le Féminisme ou la mort* (1974), Carolyn Merchant's *The Death of Nature* (1980), Val Plumwood's *Feminism and the Mastery of Nature* (1993)—illuminates the regime's fusion of two dominations. The Aunts designate Handmaids national resources, a phrase borrowed from the lexicon of extraction; and the women the reproductive economy discards are spent in the Colonies cleaning the waste of the industrial economy. What ecofeminism analyzed as parallel dominations of women and nature become, in the Colonies, a single labour process.

The demography is also racial. The Notes situate Gilead within a wider decline of white birth rates across the industrialized North—the convening institution boasts, tellingly, a Department of Caucasian Anthropology—and the regime's treatment of the "Children of Ham" (Chapter 5) confirms that the crisis Gilead addresses is the reproduction of whiteness. Composed amid Western anxieties about a "birth dearth" soon to be popularized by Ben Wattenberg (1987), the novel anticipates the ethno-natalist replacement rhetoric of the twenty-first century. Gilead's theodicy is a racial theodicy: the sign of election is not fertility but white fertility.

4.3 Accumulation by Dispossession

The coup's first economic act precedes its first reproductive act. Women's accounts in the Compubank are frozen and their balances transferred to husbands or male kin; women are dismissed from employment by decree. Marx wrote that the history of primitive accumulation, the forcible separation of producers from their means of subsistence, "is written in the annals of mankind in letters of blood and fire" (*Capital* I, ch. 26). David Harvey's "accumulation by dispossession" (*The New Imperialism*, 2003) extended the concept to the continuing expropriations of mature capitalism. Gilead's version is written in neither blood nor fire but in code: a cashless economy permits instantaneous dispossession by administrative act, and Atwood's grasp of the infrastructural power of digitized money is among the novel's most prescient insights. The sequence matters. Property comes first, then the body; dispossession renders women dependent before conscription renders them resources.

The legal model is coverture. Blackstone's *Commentaries* (1765) declared that "by marriage, the husband and wife are one person in law: that is, the very being or legal existence of the woman is suspended during the marriage." Gilead restores coverture by computer, and the novel registers the complicity of liberal husbands with uncomfortable precision: Offred detects in Luke's reassurance that he will provide for her a satisfaction he does not acknowledge, and records her sense that their mutual belonging has become her belonging to him. Maria Mies's concept of "housewifization" (1986) names the process by which capitalism constituted women as dependent non-workers whose labour appears as love. Gilead's dispossession is housewifization at the speed of a database.

4.4 Alienation in Four Forms

The *Ökonomisch-philosophische Manuskripte* of 1844 identify four dimensions of alienated labour: estrangement from the product, from the activity of production, from species-being (*Gattungswesen*), and from other human beings. No figure in literature instantiates the schema more exactly than the Handmaid. She is estranged from her product: the child passes to the Wife at birth, and the Handmaid may nurse it only for some months before reassignment. She is estranged from the activity: the Ceremony requires her motionless passivity, and participation, pleasure, even attention are proscribed. She is estranged from species-being in Marx's precise sense: alienated labour, he argues, degrades species-life into a mere means of individual existence, and Gilead converts the species-reproductive capacity literally into the Handmaid's means of survival—bear, or be sent to the Colonies. And she is estranged from others: Handmaids walk in mutually surveilling pairs, are forbidden private conversation, and are set against Wives and Marthas by design.

Marx's analysis, written of the factory, finds its most literal object in the reproductive body. English preserves in the single word *labour* the homonymy of toil and parturition that the Handmaid embodies, and Arendt observed in *The Human Condition* (1958) that the European vocabularies of labour are saturated with connotations of pain and trouble. The Handmaid labours in both senses, and owns the issue of neither.

4.5 Counter-Détournement

Gilead's most revealing slogan is a theft. "From each according to her ability; to each according to his needs" adapts the formula of Marx's *Kritik des Gothaer Programms* (1875)—*Jeder nach seinen Fähigkeiten, jedem nach seinen Bedürfnissen*—by sexing its pronouns, and the regime passes it off as scripture, plausibly enough given the communism of the Jerusalem church, where distribution "was made unto every man according as he had need" (Acts 4:35). Two pronouns encode the regime's entire political economy: her ability, his needs.

The slogan exemplifies Gilead's characteristic ideological operation. The Situationists theorized *détournement* (Debord and Wolman, 1956) as the diversion of the spectacle's images toward subversion; Gilead practises *counter-détournement*, the diversion of emancipatory discourse toward domination. It appropriates communist distribution, cultural feminism's dream of a women's culture, the anti-pornography critique of objectification, the

natural-childbirth movement's woman-centred birth, and environmentalism's diagnosis of a poisoned world. The regime is not anti-modern but parasitic: it speaks every liberatory language of the twentieth century in order to unsay it. This is why Aunt Lydia can sound, for a disorienting sentence or two, like a feminist.

CHAPTER FIVE

The Traffic in Handmaids

Kinship, Exchange, and the Fraternal Contract

5

5.1 Engels and the Fiction of Paternity

Engels located the origin of women's subordination in the passage from mother-right to father-right: *Der Umsturz des Mutterrechts war die weltgeschichtliche Niederlage des weiblichen Geschlechts*—the overthrow of mother-right was the world-historical defeat of the female sex (*Der Ursprung der Familie, des Privateigentums und des Staats*, 1884). Monogamy, on his account, was instituted to secure paternity for the inheritance of private property. Gilead refutes Engels's biologism even as it appears to confirm his history. The regime cannot guarantee biological paternity and does not try. Male sterility is officially unspeakable, Gileadean law recognizing only fruitful and barren women; the physician who examines Offred offers to impregnate her himself; Serena Joy, despairing of the Commander, arranges Offred's encounters with Nick. Gilead's patriarchy dispenses with the seed. It guarantees only attribution.

Roman law compressed the asymmetry into a maxim: the mother is always certain, *pater vero is est quem nuptiae demonstrant*, the father is he whom the marriage indicates (Paul, D. 2.4.5). Gilead reverses both clauses. The father is certain by decree; the mother is uncertain by erasure. Paternity becomes a performative fiction secured by ritual, name, and custody—the paternal function as signifier rather than organ (Chapter 9). Gilead's biologism is a costume over a purely symbolic patriarchy. Mary O'Brien's *The Politics of Reproduction* (1981) argued that men's "alienation of the seed," their discontinuity from the reproductive process, drives them to construct institutions that appropriate the child; Gilead is that alienation institutionalized as a form of state.

5.2 Lévi-Strauss, Rubin, Irigaray: The Circulating Mother

Lévi-Strauss's *Les Structures élémentaires de la parenté* (1949) grounded the passage from nature to culture in the incest prohibition and the exchange of women among men. Gayle Rubin's "The Traffic in Women: Notes on the 'Political Economy' of Sex" (1975) turned that structuralism against itself, defining the "sex/gender system" as the arrangements by which a society transforms biological sexuality into products of human activity, and reading Marx, Engels, Freud, Lacan, and Lévi-Strauss together as partial theorists of women's oppression. Rubin's essay, published a decade before the novel, is the methodological ancestor of this dissertation, which extends her political economy of sex into a jurisprudence of yield.

The Handmaid's circulation among Commanders' households—two-year postings, conferred by the state, recalled, and reassigned—is a traffic in women rendered administratively explicit. Like the gift in Mauss's *Essai sur le don* (1925), it binds giver, recipient, and community in obligation; like the valuables of the *kula*, it accrues prestige through circulation. Luce Irigaray's "Le marché des femmes" (in *Ce sexe qui n'en est pas un*, 1977) supplies the finer taxonomy: in a patriarchal economy women take three forms—the mother, use-value withdrawn from exchange as private property; the virgin, pure exchange-value; the prostitute, a use that is itself exchanged. Gilead's colour code realizes the triad and extends it.

Caste	Habit	Function	Value in the economy of exchange
Wife	Blue	Legal mother; holds title to the child	Irigaray's mother: use-value withdrawn from exchange
Daughter	White	Bride awaiting distribution to Angels	Irigaray's virgin: pure exchange-value
Handmaid	Red	Bearer, circulated between households	Maternal use-value circulated as the prostitute circulates
Jezebel	Remnants of pre-Gilead costume	Forced prostitution in a state-run brothel for Commanders and foreign delegations	Irigaray's prostitute: a use that is exchanged
Martha	Dull green	Domestic labour, sexually neutralized	Labour-power stripped of sexual value
Econowife	Red, blue, and green stripes	Every function in one body	The undivided woman of the poor

Caste	Habit	Function	Value in the economy of exchange
Unwoman	None of her own	Expelled from every function	Waste

The Handmaid is the anomalous term that discloses the system: maternal use-value placed into circulation as the prostitute circulates. This is why Wives regard Handmaids with the contempt reserved for harlots while the Aunts sanctify them as vessels; within the system's contradiction both attitudes are correct. Irigaray's sequel essay imagines commodities that refuse to go to market and enter into relations among themselves ("Des marchandises entre elles"). The Red Center's nocturnal rite, in which the women pass their names hand to hand across the gap between beds, is such a counter-circulation: a traffic in names among women that mimics and undoes the traffic in women among men.

5.3 The Sexual Contract and the Sons of Jacob

Carole Pateman's *The Sexual Contract* (1988) argued that the original social contract presupposes a prior sexual contract securing men's orderly access to women's bodies, and that modern patriarchy is fraternal rather than paternal: the brothers of Freud's primal horde (*Totem und Tabu*) overthrow the father and institute law among themselves. Gilead's founders call themselves the Sons of Jacob, and the name is exact. Jacob's twelve sons were born of four women, two wives and two handmaids; Dan and Naphtali were Bilhah's, Gad and Asher Zilpah's. The fraternity names itself after the offspring of the very institution it restores. Its sexual contract is a schedule of entitlements distributed by rank: Commanders receive Wives and Handmaids, Angels returning from the front receive Daughters in mass weddings, and lesser men are matched with Econowives. Pateman's further claim that commercial surrogacy is the newest instance of the sexual contract, to which the Coda returns, places Gilead on a continuum with liberal contract rather than in simple opposition to it.

5.4 Dworkin's Farm and Brothel

Andrea Dworkin's *Right-Wing Women* (1983), published as Atwood was beginning the novel, distinguished two models of women's exploitation: the brothel model, in which women are sexual commodities, and the farming model, in which they are reproductive land, sown and harvested. Dworkin predicted that reproductive technology would make the farming model practicable on a scale rendering "surplus" women disposable. Gilead institutionalizes both models within one state—the farm of the Handmaid system, the brothel of Jezebel's—and disposes of the surplus in the Colonies.

Yet the novel declines to enlist on Dworkin's side. Offred's mother, burning pornographic magazines at a rally, belongs to the movement Dworkin led. The anti-pornography ordinance Dworkin drafted with Catharine MacKinnon, adopted in Indianapolis in 1984 with the support of social conservatives and struck down by the Seventh Circuit in *American Booksellers Association v. Hudnut* (1985), exemplified the alliance between radical feminism and the religious right that the novel represents as one of Gilead's seeds. The novel confirms Dworkin's prophecy and indicts her coalitions.

5.5 Papa's Baby, Mama's Maybe: Spillers Inverted

Gilead's rule of descent inverts the American grammar Spillers anatomized. Under slavery, *partus sequitur ventrem* made the child follow the enslaved mother's condition while the father vanished into deniability: Mama's baby, Papa's maybe. In Gilead the child follows the father's house while the bearing mother vanishes into deniability: Papa's baby, Mama's maybe. Yet because male sterility is unspeakable and conception may be covertly arranged, the Gileadean father is himself a maybe. The true formula is therefore *Papa's baby*, *Papa's maybe*: paternity juridically certain and biologically fictive, maternity biologically certain and juridically void. Gilead abolishes the one certainty Roman law held absolute.

The inversion has a darker valence. The Handmaid's condition is narrated through tropes forged in the experience of enslaved Black women: sexual coercion within the household, the transfer of children, the prohibition of literacy, passes and patrols, the master's name borne as one's own, and an escape route north named, with deliberate echo, the Underground Femaleroad. Meanwhile Gilead removes Black Americans from its reproductive order altogether. The "Children of Ham" are deported to "National Homeland One" in the Midwest, a designation that in 1985 unmistakably evoked apartheid South

Africa's "homelands"; Jews are offered conversion or emigration, with lethal consequences for some. The white Handmaid is subjected to a version of the grammar historically imposed on Black women, while the women for whom that grammar was invented are expelled from the text's field of vision.

5.6 The Horror of a Revoked Exemption

To specify the novel's racial structure is not to diminish it but to identify its affect. Gilead horrifies its implied reader—white, liberal, North American—because it *revokes an exemption*: it turns upon the protected subjects of reproductive citizenship a regime of reproductive expropriation long practised on others. Dorothy Roberts's *Killing the Black Body* (1997) documents the dual structure of American reproductive politics, in which white women were pressed to reproduce and women of colour pressed not to, through coerced sterilization, punitive welfare regulation, and later contraceptive coercion. In 1961 a white surgeon in Mississippi removed Fannie Lou Hamer's uterus without her knowledge or consent during an operation for a tumour, a practice she publicized as the "Mississippi appendectomy." In 1973 a federally funded family-planning clinic in Montgomery, Alabama, surgically sterilized Minnie Lee and Mary Alice Relf, Black sisters aged fourteen and twelve, after their mother, who could not read, marked an X on a form she understood to authorize contraceptive injections. A 1976 report by the U.S. General Accounting Office found that the Indian Health Service had sterilized 3,406 Native American women in four of its twelve service areas between 1973 and 1976, with consent requirements widely violated. Canada's record is no cleaner: Indigenous women in Saskatchewan described being pressured into tubal ligation in hospital, often during labour or shortly after giving birth, a practice documented by an external review in 2017 and found by a Senate committee in 2021 to have persisted. Gilead stages only the "positive" pole of this eugenic dyad. Its negative pole—the Colonies; the resettlements; the Unbabies, infants born with deformities whom, the text implies, the regime does not permit to live—remains at the margin of Offred's sight, as it remained at the margin of her society's.

The reproductive justice framework articulated by SisterSong and theorized by Loretta Ross and Rickie Solinger (2017) supplies the corrective vocabulary: the right not to have children, the right to have children, and the right to parent them in safe and sustainable communities. Gilead violates each right for a different population—Handmaids lose the first and the third, the resettled and the Unwomen the second. The novel's achievement and its limitation lie in the

same place: it made the loss of the first right legible to readers who had never imagined losing it.

PART THREE

Prohibition

6 *Biopolitics, Sovereignty, and the Eye*
7 *Becoming-Handmaid*
8 *The Law and Its Desire*

III

CHAPTER SIX

6 Biopolitics, Sovereignty, and the Eye

6.1 Foucault: The Failed Restoration of Alliance

The first volume of Foucault's *Histoire de la sexualité* (1976) dismantled the "repressive hypothesis," arguing that modern power does not chiefly forbid sex but incites, organizes, and multiplies discourse about it. Foucault distinguished an older *dispositif d'alliance*—a system of marriage, kinship, and the transmission of names and possessions—from a modern *dispositif de sexualité* that intensifies bodies, pleasures, and knowledges, and observed that the latter had been superimposed upon the former. Gilead's project can be stated in these terms with exactness: it attempts to abolish the deployment of sexuality and restore the deployment of alliance in pure form. The Ceremony is alliance stripped of pleasure—kinship, transmission, and name, without desire.

The restoration fails, and its failure is the novel's Foucauldian insight. Sexuality returns everywhere: in Jezebel's, where the elite consume the eroticism they have outlawed; in the Commander's furtive longing for intimacy; in Offred's affair with Nick; and in Testifying, the Red Center's confessional practice. Janine is made to recount that she was gang-raped at fourteen and had an abortion; the Aunt leads the circle of women in declaring it her fault, and they chant that she led the men on. The following week she pre-empts them by accusing herself. The rite incites sexual discourse exactly as the confessional technologies of Foucault's history did, and its product is a victim who prosecutes herself. Gilead is repressive in its surface and productive in its operation, generating Handmaids, rituals, narratives, and desires. Foucault's lectures *Il faut défendre la société* (1976) add the decisive coda. Biopower, the power to *faire vivre et laisser mourir*, "make live and let die," retains the sovereign right to kill through racism, which inserts a caesura into the population between those who

must live and those who may die. Gilead's deportation of the Children of Ham and its exile of Unwomen are that caesura.

6.2 The Domestic Panopticon and the Eye of Providence

Bentham's Panopticon (1791), as reread in *Surveiller et punir* (1975), renders the inmate perpetually visible to an unseen inspector until she becomes the principle of her own subjection. Gilead relocates the Panopticon from prison to household. Wives watch Handmaids, Marthas watch Wives, Handmaids watch one another in pairs, and the Eyes watch all, while the regime's valediction commends each subject to a divine gaze. The white wings of the Handmaid's habit perfect the apparatus: they occlude the wearer's vision while exposing her to view, a portable inverse panopticon that restricts seeing while maximizing being seen. In Offred's room, the blank plaster wreath from which a chandelier has been removed—lest she hang herself as her predecessor did—gazes down like a socket from which an eye has been taken: the panoptic eye blinded, the trace of a death.

The Eye also has a civic genealogy. The Eye of Providence above the unfinished pyramid on the Great Seal of the United States (1782), with its motto *Annuit coeptis*, "He has favoured our undertakings," is the emblem of the providential nationalism Robert Bellah called American civil religion (1967). Gilead converts civil religion's benign providential eye into an organ of police. Foucault's disciplinary techniques—the timetable of bells, the partitioning of rooms and routes, the examination performed in the gynaecologist's office—combine with what Deleuze would call the modulations of a society of control (1990): the Compubank's capacity to switch an identity's access on or off by a keystroke. Gilead is a hybrid of discipline and control, seventeenth-century in its imagery and digital in its infrastructure.

6.3 Exception, Bare Life, and the Ancilla Sacra

Souverän ist, wer über den Ausnahmezustand entscheidet: sovereign is he who decides on the exception (Schmitt, *Politische Theologie*, 1922). Gilead's founding is a Schmittian decision: the assassination of the President and Congress, attributed to Islamic fanatics; the declaration of emergency; the suspension of the Constitution, announced as temporary. Benjamin's eighth thesis on the concept of history (1940) supplies the corrective: the tradition of the oppressed teaches that the state of emergency in which we live is not the exception but the rule. Agamben's *Stato di eccezione* (2003) generalized the insight: the exception, prolonged, becomes the paradigm of government. Gilead's temporary suspension is its permanent constitution.

Agamben's *Homo Sacer* (1995) located the original activity of sovereignty in the production of bare life, *zoē* included in the political order through its exclusion, embodied in the archaic Roman figure of *homo sacer*, who may be killed with impunity but not sacrificed. The Handmaid inverts this figure. She may not be killed—violence against a Handmaid is a capital crime, as the Particicution's pretext demonstrates—but she may be sacrificed, wholly consumed by the regime's reproductive project. She is *ancilla sacra*: consecrated in the sense of set apart, untouchable by private violence and totally available to sovereign use. The camp, which Agamben called the *nomos* of the modern, reappears in Gilead as the Colonies, where the women the regime discards are worked to death clearing toxic and radioactive waste, surviving, by Moira's account, a few years at most. The Wall, where the regime hangs and displays physicians who performed abortions when abortion was lawful, a priest still in his cassock, and two Guardians hanged together under placards reading "Gender Treachery" for desire between men, demonstrates the retroactivity of the exception, which criminalizes the past in order to found the present. It also names the crime Gilead punishes most absolutely: desire that cannot yield issue.

6.4 Arendt's Three Murders

In the chapter of *The Origins of Totalitarianism* (1951) devoted to total domination, Arendt identified three stages by which the camps prepared human beings for total domination: the killing of the juridical person, the murder of the moral person, and the destruction of individuality. Gilead executes each with method. The juridical person is killed by the freezing of accounts, the termination of employment, and the annulment of second marriages, which voids Offred's marriage to the divorced Luke, renders her an adulteress, and reassigns her daughter. The moral person is murdered through the manufacture of complicity: Testifying, which makes victims accuse one another; the Particicution, which makes Handmaids executioners; Moira's choice between the Colonies and Jezebel's; the women's Salvaging, at which Aunt Lydia presides over the hanging of two Handmaids and a Wife for crimes the regime declines to name, and each Handmaid must lay her hand on the rope and then on her heart in sign of consent; arrangements by which each survival is purchased with another's injury. Individuality is destroyed by uniform, by the patronymic, and by the pedagogy of the Red Center. Arendt also diagnosed loneliness (*Verlassenheit*) as the experiential ground of totalitarian rule, and Gilead's prohibition of friendship among Handmaids aims at precisely that condition.

Arendt's typology also measures Gilead's distance from the totalitarianisms she studied. Gilead lacks a mass movement, a world-conquering ideology of history or nature, and the perpetual motion of terror; it is a theocratic oligarchy deploying totalitarian techniques within a static, patrimonial order. Its affinity is less with *Origins* than with *Eichmann in Jerusalem* (1963). The Commander, who wishes to be liked, plays Scrabble, and defends the regime as an improvement for most, is a study in the banality of evil: not a monster but a functionary of thoughtlessness.

6.5 Necropolitics and Immunity

Achille Mbembe's "Necropolitics" (2003) defined sovereignty as the capacity to dictate who may live and who must die, and identified the colony as the zone in which sovereignty operates outside the law, generating "death-worlds." The Colonies are Gilead's death-world, the necropolitical underside of its pronatalism; the regime's commitment to making live is financed by its commitment to letting die. Roberto Esposito's *Immunitas* (2002) and *Bíos* (2004) describe modern biopolitics as immunization, the protection of life through the incorporation of the negative, which pushed to its limit becomes autoimmune. Gilead is an autoimmune regime: to save the nation's fertility it consumes the lives of the fertile. Esposito's derivation of *communitas* from *munus*, a gift that is also an obligation, illuminates the Handmaid's position: she is the one from whom the *munus* is extracted without return, the gift that founds a community to which she does not belong. Esposito's project of an affirmative biopolitics, a politics of rather than over life, marks the horizon toward which Chapter 12 moves.

CHAPTER SEVEN

Becoming-Handmaid

Gender as Uniform, Ritual, and Citation

7

7.1 Beauvoir: Immanence by Decree

Le Deuxième Sexe (1949) argued that woman has been constituted as the Other against which man defines himself as Subject, and that one becomes, rather than is born, a woman. Beauvoir's existentialist vocabulary opposed transcendence, the projection of the self into open futures through projects, to immanence, the repetitive maintenance of life, and identified reproduction as the paradigmatic site in which women were confined to immanence. Gilead decrees immanence. The Handmaid's existence is pure repetition—the monthly cycle, the daily walk to the shops, the Ceremony, the waiting—and her time is cyclical, menstrual, liturgical. The Red Center is Beauvoir's thesis converted into pedagogy: an institution in which women *become* Handmaids through instruction, ritual, and punishment.

Beauvoir also analyzed women's complicity: the temptation to accept Otherness for the security and irresponsibility it confers, a species of *mauvaise foi*. Serena Joy is the novel's study in that bad faith. A former gospel singer and televangelist who preached domesticity from a public platform, she is now confined to the domestic sphere she advocated, knitting scarves for the troops; her figure recalls activists such as Phyllis Schlafly, who campaigned against the Equal Rights Amendment while sustaining a national career. The novel grants Serena the dignity of suffering without the excuse of innocence.

7.2 Austin, Derrida, Butler: The Ceremony as Performative

Austin's *How to Do Things with Words* (1962) distinguished constatives from performative utterances that accomplish what they say, subject to "felicity conditions." Derrida's "Signature événement contexte" (1972) argued that performatives succeed only because they are iterable—citations of conventional formulas—and that iterability entails the permanent possibility of misfire and parody. Butler's *Gender Trouble* (1990) and *Bodies That Matter* (1993) drew the consequence for gender: it is constituted through the stylized repetition of acts, and "sex" itself is materialized through reiterated norms. Gilead renders gender's citationality explicit to the point of parody. The Ceremony opens with the Commander's reading of Genesis 30, a citation that confers felicity on what follows; the greetings are fixed formulas; the habits are a materialized code; every sanctioned utterance quotes scripture or the Aunts. Gilead is a regime of total citation, in which no act is original and every act is licensed by a prior text.

Citation's vulnerability is its iterability. Offred's private rewriting of the Lord's Prayer, her puns on the regime's vocabulary, and Moira's bomb in Gilead are resignifications that turn the regime's formulas against their authorizing context. The novel's most celebrated textual object, the phrase Offred finds scratched inside her wardrobe—*Nolite te bastardes carborundorum*—is a message she cannot decode but whose force she feels. When the Commander translates it, its origin proves to be a schoolboy's joke, and its transmission to have passed through his own study: her predecessor learned it from him. The resistance motto is a counterfeit of the master's language, cod-Latin whose pseudo-genitive is fashioned from Carborundum, the trade name of a silicon-carbide abrasive. Resistance does not refuse the inherited tongue; it counterfeits it, declining an industrial grinding compound into a mock-sacred injunction against being ground down. Its authority is wholly performative: it works because it is believed to mean, and its meaning is completed only after the woman who carved it is dead.

7.3 Girard, the Bacchae, and the Particicution

René Girard's *La Violence et le sacré* (1972) and *Le Bouc émissaire* (1982) theorized the scapegoat mechanism: mimetic rivalry escalates toward a crisis of undifferentiation, resolved by the unanimous violence of all against one, the victim accused of the stereotypical crimes that dissolve difference—sexual transgression, violence against the vulnerable, sacrilege. The Particicution conforms to Girard's model with startling precision. The Handmaids, forbidden all aggression, are suddenly licensed: at Aunt Lydia's whistle they beat and kick to death, with their own hands and feet, a man accused of rape, including that of a pregnant Handmaid whose child died—the paradigmatic crime against reproduction. Their unanimity is engineered, their frenzy real, the victim's guilt a fiction—Ofglen whispers that he was a political prisoner and strikes him senseless to spare him the worst. The regime harvests women's rage and discharges it onto a substitute.

The classical prototype is the *sparagmos* of Euripides' *Bacchae*, in which the maenads tear Pentheus apart and his mother carries his head home in triumph before recognition dawns. The scriptural prototype is inverted. In Judges 19 the Levite dismembers the body of his abused concubine and sends its twelve pieces through the tribes of Israel, a message among men written on a woman's flesh—one of Phyllis Trible's *Texts of Terror* (1984). The Particicution kills a man by women's hands as a message from the regime to its women. Gilead allows women to enact, once, the violence scripture does to women, and so binds them to the order that does it.

7.4 The Grey Zone, the Bargain, and the Victim Positions

Primo Levi's "La zona grigia," in *I sommersi e i salvati* (1986), refused the binary of perpetrator and victim, describing the privileged prisoners whose collaboration the camp system required and insisting that judgment of them be suspended by those who had not shared their condition. Gilead is saturated with grey. The Aunts, recruited from women who chose administration over the Colonies, are its kapos; the Wives, its beneficiaries and its prisoners; the Marthas, its informants of necessity. Offred herself is compromised: she wants to be desired by the Commander, savours her small privileges, and, once absorbed in Nick, loses interest in Ofglen's requests that she gather intelligence for Mayday. The novel refuses the heroic plot—Offred apologizes to her imagined listener for the pain and fragmentation of her story—and in doing so dignifies ordinary survival. Deniz Kandiyoti's "Bargaining with Patriarchy" (1988) gives the structural account: women's strategies within systems they cannot overthrow are rational bargains that nonetheless reproduce those systems. The bargain reaches into Offred's own vocabulary. She declines to call the Ceremony rape, reasoning that she chose it over the Colonies. The refusal is the regime's achievement, not its exoneration: a choice between being raped and being sent to die is the manufactured choice Arendt identified as the murder of the moral person, and the word the victim cannot use is the one the analysis must.

Atwood's own critical theory supplies the subtlest instrument. *Survival* (1972) proposed four "basic victim positions": to deny that one is a victim; to acknowledge victimhood but attribute it to fate, God, biology, or history; to acknowledge victimhood but refuse its inevitability; and to be a "creative non-victim." Gilead's official theology institutionalizes Position Two, explaining women's subjection as destiny and divine will. Serena Joy and the Aunts inhabit Position One. Moira and Ofglen embody Position Three, and Moira's descent from it into resigned survival at Jezebel's is the novel's most disenchanting turn. Position Four, which Atwood judged scarcely available within a victimizing society, is occupied only by the act of narration. The creative non-victim of *The Handmaid's Tale* is not its protagonist but its narrator: the woman who, after escape, makes her captivity into a told thing.

7.5 The Feminism Gilead Ate

The novel's satire of second-wave feminism has been read as backlash (Neuman 2006 surveys the debate), but its target is more specific. Offred's mother, an activist of the Take Back the Night generation, burns pornography with her comrades and dreams of a women's culture; Offred, addressing her in absentia, observes with bitter irony that a women's culture now exists, though not the one her mother meant. Aunt Lydia speaks of solidarity among women, protection from degradation, an end to objectification. Gilead has consumed the vocabulary of difference feminism—the maternalist ethics of Sara Ruddick's "Maternal Thinking" (1980), the "different voice" of Carol Gilligan (1982), the separatist ideal of a women's sphere—and returned it as policy. Written amid the "sex wars" inaugurated by the 1982 Barnard conference on sexuality, the novel distributes the antagonists between two women: the mother, who would purify sexuality, and Moira, lesbian and libertine, who refuses to be purified. Neither is endorsed; both are loved.

What Atwood attacks is not feminism but essentialism, the belief that a female nature—nurturing, maternal, pacific—could ground a politics. Gilead demonstrates that any essence can be weaponized: once women are defined by what they *are* rather than by what they may *become*, the definition belongs to whoever holds power. Atwood later said she would accept the label "feminist" for the book only in the sense of a novel in which women are full human beings, with all the variety of character and moral failing that implies, rather than angels or pure victims. The principle is exact. The novel's feminism is a humanism of moral complexity, and its refusal of female innocence is its most serious tribute to female personhood.

CHAPTER EIGHT

The Law and Its Desire

8

8.1 No Sign Against Eating Stones

The third epigraph, a Sufi proverb observing that the desert carries no sign forbidding the eating of stones, admits at least three readings, and the novel sustains all of them. The first is Freudian. *Totem und Tabu* (1913) argues that prohibitions exist only where desire exists—what no one wishes to do need not be forbidden—so that the intensity of a taboo measures the strength of the wish it opposes. Gilead's thicket of interdictions is therefore a map of what it fears its subjects want: to read, to touch, to choose, to refuse. The second reading is Pauline: "I had not known lust, except the law had said, Thou shalt not covet" (Romans 7:7). The law does not merely register desire; it produces knowledge of it. Offred's sensorium, sharpened by deprivation into erotic attention to butter, eggs, the smell of nail polish, a lit cigarette, is a Pauline body, made desirous by prohibition. The third reading is the bleakest: where an act punishes itself, no law is required to forbid it, and a desert may host its stone-eaters unmolested. Gilead's subjects in the grey zone eat stones without being told not to; complicity requires no legislation.

8.2 Jezebel's: The Licensed Carnival

Bakhtin's *Rabelais and His World* (1965) celebrated carnival as the suspension of hierarchy, the festival of the grotesque body, and the laughter that uncrowns. Jezebel's is carnival in its degraded form. Commanders shed their uniforms; women appear in the debris of the pre-Gilead wardrobe—sequinned costumes, cheerleaders' skirts, bunny ears; forbidden liquor and cosmetics circulate. Terry Eagleton's objection to Bakhtinian romanticism, that carnival is a licensed affair, a permitted rupture of hegemony that ultimately contains it (*Walter Benjamin*, 1981), describes Jezebel's exactly. The brothel does not suspend the hierarchy; it is the hierarchy's reward. The Commander's apology for it, that nature demands variety for men, reduces Gilead's theology to a sexual physiology reserved for the elite, and confirms Foucault: the regime of pure alliance requires a hidden supplement of sexuality.

The establishment's name completes the analysis. Jezebel, Ahab's Phoenician queen, "painted her face, and tired her head, and looked out at a window" before she was thrown down and devoured by dogs (2 Kings 9:30–37). Gilead names its brothel after the archetype of the foreign, painted, idolatrous woman, and so performs, in a single word, the theological slur by which it disowns the pleasures it consumes.

8.3 Scrabble, Recognition, and the Pathway from Slavery to Freedom

The Commander's first transgressive request is that Offred play Scrabble with him. The game is contraband because it puts words in a woman's hands. In the dialectic of lordship and bondage in Hegel's *Phänomenologie des Geistes* (1807), the master's self-consciousness depends on the bondsman's recognition, yet recognition from one he has reduced to a thing cannot satisfy him; he is caught demanding free acknowledgement from the unfree. The Commander's evenings dramatize that impasse. He wants Offred to want to play, to enjoy his company, to kiss him as though she meant it—the gift of recognition his power has made impossible.

For Offred the game is something else: the reclamation of words as play. Among the words she builds on the board are *larynx* and *zygote*—the organ of voice and the first cell of conception, the two capacities the regime has expropriated, laid down as tiles in a game played for pleasure. Gilead's prohibition of female literacy, with its pictogram shop signs, its Bible kept under lock, and its prayers printed by machine, reenacts the anti-literacy statutes of the antebellum South. Frederick Douglass's *Narrative* (1845) recounts how his

master forbade his mistress to teach him, explaining that learning would spoil him for slavery, and how the prohibition disclosed its own secret: “From that moment, I understood the pathway from slavery to freedom.” Offred’s literacy, however, is licensed by the master himself, and therein lies its ambiguity: a freedom received as indulgence remains the master’s. The resonance of names is irresistible, though nothing in the text requires it. Douglass, born Frederick Bailey, renamed himself in freedom; Offred bears the name of a Commander whose two candidates, as the “Historical Notes” reconstruct them, are both called Frederick.

8.4 Pen Is Envy

Among the mottoes of the Red Center is a pun on Freud’s *Penisneid* (“Einige psychische Folgen des anatomischen Geschlechtsunterschieds,” 1925): Pen Is Envy. Aunt Lydia’s joke encodes a theory of authorship. Sandra Gilbert and Susan Gubar opened *The Madwoman in the Attic* (1979) by asking whether the pen is a metaphorical penis, and diagnosed in women writers an “anxiety of authorship” generated by a tradition that equated literary creation with paternity—a feminist revision of Harold Bloom’s *The Anxiety of Influence* (1973). Gilead literalizes the equation. Writing is reserved to men because authorship is fatherhood; women may bear but may not author. The novel’s form answers the joke with precision. Offred does not write; she speaks, recording her story on cassettes over popular music, and her authorship will be conferred after her disappearance by male editors who order, title, and annotate her words. The pen is envy indeed, and it returns in the “Historical Notes” as the scholar’s transcription.

The complementary concept is Karen Horney’s “womb envy,” introduced in “Flucht aus der Weiblichkeit” (1926) against Freud’s phallocentrism: men’s envy of gestation and lactation, sublimated into cultural production and domination. Gilead is a regime of womb envy masquerading as reverence. The Birth Day’s most grotesque detail—the Wife enthroned on the raised rear seat of a double birthing stool above the labouring Handmaid, simulating the labour she cannot perform—is a couvade, the ritual mimicry of childbirth by those who do not bear, here institutionalized as the expropriation of parturition itself. Pen envy and womb envy meet in Gilead’s founding fantasy: to author what one cannot bear, and to bear what one has not authored.

PART FOUR

Testimony

9 *The Grammar of the Genitive*

10 *The Clerk's Harvest*

IV

CHAPTER NINE

The Grammar of the Genitive

9.1 Of-Fred: The Name as Title of Usufruct

Gilead's Handmaids bear their Commander's given name prefixed by a preposition of possession: Offred, Ofglen, Ofwarren. The patronymic is a genitive in prepositional disguise, and its grammar is exact. It names not the woman but the relation, and it attaches to the post rather than the person. When the first Ofglen hangs herself rather than face interrogation, another woman appears at the shopping rendezvous under the same name; when Janine is reassigned, her name will change with her household. The name behaves precisely as the title of a usufruct behaves: it passes with the use, indifferent to the identity of the thing used.

The puns the name supports—*offered*, as a sacrifice is offered; *off-red*, a deviation from the colour; *of Fred*—are well catalogued. Less noted is its morphology. Gilead has abolished women's surnames in the old patriarchal sense, the name of the father and then of the husband, and replaced them with a name that is pure relation: a possessive without a possessor's surname, the genitive as ontological condition.

9.2 Nom du Père, Non du Père

Lacan's paternal metaphor (*Séminaire III*, 1955–56; "D'une question préliminaire à tout traitement possible de la psychose," *Écrits*, 1966) installs the subject in the symbolic order through the *Nom-du-Père*, a homophone that is also the *Non-du-Père*: the father's name and the father's prohibition are one signifier. In Gilead the homophony becomes an identity. The Handmaid's name is the Commander's name and her law is his "no"; the patronymic *is* the prohibition. Lacan's theory, which treats the paternal function as a signifier independent of any biological father, describes Gilead more precisely than Engels's biologism (Chapter 5): the regime's father is a word. This is why the possibility of the Commander's sterility is unspeakable rather than merely embarrassing. To utter it would expose that the Name has no seed behind it, and that Gilead's symbolic order rests on a signifier without a referent.

9.3 The Withheld Who

Arendt's *The Human Condition* (1958) distinguishes *what* a person is—qualities, talents, roles, the attributes she shares with others—from *who* she is, the unique existent disclosed only in speech and action and captured only in the story others tell of her. Adriana Cavarero's *Tu che mi guardi, tu che mi racconti* (1997; *Relating Narratives*, 2000) radicalized the distinction into an ethics of the "narratable self": each of us desires to hear our life-story told by another, and the self is constituted relationally in that telling. Cavarero's emblem is drawn from the Milanese feminist collectives of the 1970s. Emilia, unable to narrate herself, receives from her friend Amalia a written account of her life, which she carries with her and reads with tears of recognition.

Gilead reduces every woman to a *what*: a colour, a function, a patronymic. The novel's ethical core is its protection of the *who*. Offred's own name is never given. She describes holding it in reserve, buried like a treasure she will one day return to unearth; she discloses it to Nick and to no one else, and the text withholds it from us. In the Red Center the women whisper their names across the beds—Alma, Janine, Dolores, Moira, June—and readers, followed by the television adaptation, have identified the one name never otherwise assigned as hers; Atwood has said she did not design the inference but accepts it. The point survives the inference. The archive that will eventually possess her voice cannot find her name. The "Historical Notes" spend their energy identifying the Commander, a *what* of history, and abandon the narrator as unidentifiable. The archive's failure is the narrative's success. The withheld name is the infructuous

remainder par excellence: unharvestable, untransferable, unsummonable by any power that would claim it.

9.4 The Lineage of the Room

Offred's room has a history. Her predecessor scratched the cod-Latin motto into the wardrobe and then hanged herself from the light fixture since removed. Offred's relation to this woman—unknown, unnamed, encountered only as a message and an absence—is the most intimate in the novel, and its intertexts are canonical. The narrator of Charlotte Perkins Gilman's "The Yellow Wallpaper" (1892), confined to a barred nursery by a physician-husband, discovers behind the paper's pattern a creeping woman and finally becomes her. Brontë's Bertha Mason, locked in the attic at Thornfield, becomes in Gilbert and Gubar's reading the author's mad double; Jean Rhys's *Wide Sargasso Sea* (1966) restores her history as Antoinette Cosway, renamed "Bertha" by her English husband—renaming as dispossession, the Atlantic precursor of Of-Fred. Woolf's *A Room of One's Own* (1929) made the room the condition of women's authorship and imagined Shakespeare's sister, gifted and forbidden, dead by her own hand. Offred has a room that is not her own, and her predecessor is Judith Shakespeare's descendant, whose single surviving line is an inscription in a cupboard.

Offred, in turn, imagines a successor. Contemplating the theft of a fading daffodil from the sitting room, she thinks of pressing it beneath the mattress for the next woman to find, as she found the inscription. The predecessor's message and the successor's flower constitute a lineage transmitted not by blood, name, or property but by the room: a *kinship of the room*. It is a genealogy that bears no fruit, only signs, passed among women who will never meet. Donna Haraway's later injunction to "make kin not babies" (*Staying with the Trouble*, 2016) might serve as its motto, and as the exact antithesis of a program that destroys kin in order to make babies. Against the Bilhan structure, in which the bearer is erased and the title-holder names the issue, the lineage of the room is a counter-genealogy of the infructuous: transmission without offspring, inheritance without property, descent without a name.

CHAPTER TEN

The Clerk's Harvest

The "Historical Notes" as Testimonial Usufruct

10.1 Denay, Nunavit, 2195

The novel ends with a partial transcript of the Twelfth Symposium on Gileadean Studies, convened at the University of Denay, Nunavit, on 25 June 2195. The chair, Professor Maryann Crescent Moon of the Department of Caucasian Anthropology, introduces the keynote speaker, Professor James Darcy Pieixoto, director of the Twentieth and Twenty-First Century Archives at Cambridge University. The future the Notes disclose is ostensibly redeemed. Gilead has fallen; the academy convenes in a northern polity whose names—Dene, and a Nunavit that anticipates the territory of Nunavut created in 1999—signal Indigenous self-government; whiteness has become an object of anthropology. Yet the structure of authority is unchanged. The keynote belongs to a Cambridge man who opens with sexual puns, among them the bawdy play on "tail" in the title and the coinage "Underground Frailroad," to laughter and applause; who counsels his audience against passing moral judgment on the Gileadeans, since the scholar's task is to understand rather than censure; and who regrets that the narrator neglected to supply what a historian would value, such as a few pages from the Commander's private computer printouts.

The tapes—some thirty cassettes found in a footlocker in what had been Bangor, Maine, recorded over commercial music whose labels served as camouflage—were transcribed by Pieixoto and his colleague Professor Knotly Wade, who arranged them in an order the editors concede to be conjectural. Atwood explained in "Orwell and Me" (2003) that she modelled the device on the appendix to *Nineteen Eighty-Four*, "The Principles of Newspeak," whose past tense implies that Oceania fell. Criticism has read the Notes as satire of academic misogyny (Davidson 1988), as documentary subversion (Grace 1998), and as

Atwood's hedge against despair. This chapter reads them as the novel's second act of usufruct.

10.2 "Who Peyntede the Leon?"

Wade's title pays homage to Chaucer, and the homage indicts its author. The Wife of Bath's Prologue opens by setting experience against authority—"Experience, though noon auctoritee / Were in this world, is right ynogh for me"—and later poses the question that might stand as epigraph to the Notes: "Who peyntede the leon, tel me who? / By God, if wommen hadde writen stories, / As clerkes han withinne hire oratories, / They wolde han writen of men moore wikkednesse / Than al the mark of Adam may redresse" (lines 1–2, 692–96). The allusion is to the Aesopic fable of a lion shown a painting of a man slaying a lion: a lion, he observes, would have painted otherwise. The Wife's fifth husband, the clerk Jankyn, reads nightly from his anthology of wicked wives until she tears three leaves from it. Pieixoto is Jankyn: the clerk who reads, and writes, the woman, his anthology of female error replaced by an annotated edition of female testimony.

The Clerk's Tale is equally apposite. Griselda, whose husband removes her children to test her obedience and who is praised for patient endurance until they are restored, is the medieval template of the expropriated mother whose virtue is submission. Wade's title, moreover, assigns Offred to a Chaucerian gallery of pilgrims named by function—the Knight, the Miller, the Wife—and so performs, under the sign of homage, Gilead's own operation: naming by function.

10.3 Naming the Fruit

Rachel named Bilhah's sons; Wade names Offred's tale. The text we read is the editors' edition: its sequence is their reconstruction, its title their joke, its frame their lecture. If the tale is the handmaid's issue—*partus ancillae* in the most literal sense, the offspring of her captivity—then the Symposium claims it as a usufructuary claims fruits, and the title of this dissertation names that claim. The question Brutus answered for children may be put to testimony: can the fullest expression of a *who* be counted among the fruits of another's scholarly estate? The Notes answer yes, and their answer discloses the academy's kinship with the regime it studies. Pieixoto's refusal to judge Gilead is not neutrality but solidarity of method. Regime and archive alike separate a woman's issue from her person, and both call the separation knowledge.

10.4 Envelopes: Slave Narratives, Jacobs, Hawthorne

Antebellum slave narratives reached print enclosed in authenticating documents—prefaces, letters, and certificates by white sponsors—a convention Robert Stepto analyzed in *From Behind the Veil* (1979) and John Sekora named the white envelope around the Black message (1987). Harriet Jacobs's *Incidents in the Life of a Slave Girl* (1861), published under the pseudonym Linda Brent and edited by Lydia Maria Child, was long dismissed as Child's fiction until Jean Fagan Yellin's archival research (1981; edition 1987) established Jacobs's authorship. Jacobs had hidden for nearly seven years in a garret crawlspace, the "loophole of retreat," watching her children through a hole she bored in the wall. Offred's narrative is a slave narrative in the future anterior: pseudonymous, unauthenticated, framed by a sceptical white scholar who wonders whether it might be a forgery and verifies it by identifying her master. The Notes are the envelope.

Hawthorne's "The Custom-House" supplies the American literary precedent. A male surveyor discovers a faded scarlet A and an earlier surveyor's manuscript in an upper room, and presents himself as the woman's story's custodian, reshaper, and author. Pieixoto is Hawthorne's surveyor become professor.

10.5 Schoolteacher's Notebook

Toni Morrison's *Beloved* (1987) contains the archive's darkest portrait. Schoolteacher, who takes over Sweet Home, measures the enslaved with string and instructs his nephews to list Sethe's human characteristics on one side of a page and her animal characteristics on the other; the ink he uses is ink Sethe made. His nephews hold her down and take her milk. Schoolteacher's notebook is the archive as an instrument of domination: classification as violence, the woman's own labour turned into the medium of her description. Pieixoto's annotation is that notebook transposed to 2195. It classifies, authenticates, jokes, and refuses judgment. Sethe's act, killing her daughter rather than surrender her to slavery, is literature's most radical refusal of *partus sequitur ventrem*: a refusal, at catastrophic cost, to let her child become the master's increase. The two novels define the ethical poles of the reproductive dystopia—Morrison's ethics of refusal, Atwood's ethics of survival.

Saidiya Hartman's "Venus in Two Acts" (2008) theorizes the violence of the archive of slavery, in which enslaved women survive only as entries in ledgers, inventories, and indictments, and proposes "critical fabulation" as a method that narrates what cannot be verified while exposing the archive's violence. *The*

Handmaid's *Tale* inverts Hartman's predicament and thereby dramatizes it. It presents a recovered voice, then shows in the Notes the archival violence that begins the moment the voice is recovered. The novel is a critical fabulation that contains its own archive as antagonist.

10.6 The Failed Listener

Shoshana Felman and Dori Laub's *Testimony* (1992) argued that testimony requires a listener who becomes its co-owner, and Laub described the Holocaust as an event without a witness because it destroyed the very conditions of address. Offred anticipates the problem. She tells her story to an invented "you," resolving to believe that someone is listening because she cannot bear to tell it to no one; she conceives the story as a letter, and its addressee as its condition of possibility (Linda Kauffman's reading of the novel's epistolarity, 1989, remains the best account of the device). Pieixoto is the empirical recipient who fails the role the narrative has prepared; he receives the letter as data. The reader occupies the interval between the invented "you" and the actual scholar, and is summoned to choose between Cavarero's Amalia, who gives a story back to the one whose story it is, and Pieixoto, who harvests it. The novel closes as the professor invites questions from the floor. The question owed to Offred is not his to ask.

PART FIVE

The Remainder

11 *Comparative Dystopias and Humanisms*
12 *Natality Without Issue*



CHAPTER ELEVEN

Comparative Dystopias and Humanisms

11

11.1 The Reproductive Imaginary of Dystopia

Yevgeny Zamyatin's *We* (written 1920–21; first published in English in 1924) already makes reproduction the dystopian state's frontier. The One State licenses sex by pink coupons and reserves motherhood for those who meet the Maternal Norm; O-90, too short to qualify, conceives illegally and is smuggled beyond the Green Wall—Offred's earliest literary ancestor, and the Wall's. Huxley's *Brave New World* (1932) abolishes the womb: children are decanted in hatcheries and "mother" is an obscenity. Gilead is Huxley's inverse, absolutizing the womb Huxley abolished, yet both regimes sever reproduction from love and kinship, the one by technology, the other by theology.

Orwell's *Nineteen Eighty-Four* (1949), Atwood's acknowledged model, treats sex as a duty owed to the Party and Julia's sexuality as rebellion; but its centre of consciousness is male, its rebel woman instrumental, and its object of control is thought. Atwood relocates the dystopia's consciousness to the woman and its object of control to reproduction. Katharine Burdekin's *Swastika Night* (1937), reissued by the Feminist Press in 1985 with an introduction by Daphne Patai, is the nearest precursor: a Nazi future seven centuries hence in which women have been reduced to shaven-headed breeding stock, the birth of girls is failing, and a forbidden book of true history passes among men. The coincidence of its reissue with the publication of *The Handmaid's Tale* marks a moment of feminist recovery of the dystopian archive.

11.2 Herland and Gilead

Charlotte Perkins Gilman's *Herland* (1915) imagines an all-female society that reproduces parthenogenetically and organizes its religion, ethics, and government around sacralized collective motherhood, its citizens voluntarily restraining births in the name of the race's quality. Gilead is Herland's patriarchal twin. Both sacralize maternity, subordinate the individual woman to the reproduction of the collective, and share, through Gilman's eugenic commitments, a vocabulary of racial improvement. The comparison exposes the precise target of Atwood's critique of maternalist feminism (Chapter 7): not the valuing of motherhood but its sacralization, which in any hands converts women into instruments of a collective telos.

Marge Piercy's *Woman on the Edge of Time* (1976) offers the antithesis. In utopian Mattapoisett, embryos gestate in machine "brooders," three co-mothers of any sex raise each child, and men can nurse; the same novel's dystopian alternative reduces women to surgically modified sexual commodities. Piercy realizes the program of Shulamith Firestone's *The Dialectic of Sex* (1970), which named biological reproduction the root of women's oppression and artificial reproduction its cure. Gilead is the reactionary refusal of that horizon: the Notes report that the regime outlawed artificial insemination and fertility clinics as irreligious while legitimizing and enforcing, on biblical precedent, the use of surrogate mothers.

11.3 1985: Atwood and Haraway

The year of *The Handmaid's Tale* was also the year of Donna Haraway's "Manifesto for Cyborgs" (*Socialist Review*, 1985), and the two texts are opposed responses to the reproductive politics of the decade. Haraway's cyborg is a creature without an origin story, indifferent to organic wholeness, Edenic return, and heterosexual reproductive teleology; Haraway distrusted feminisms grounded in organic motherhood and welcomed the hybridity of bodies and machines. Atwood's narrator is an organic, interior, humanist self imperilled by a theocratic organicism that bans the technologies Haraway would affirm. Gilead is the cyborg's nightmare, a regime that legislates "nature." Yet the texts converge on one insight: nature is a political artefact. Gilead's nature is a decree; Haraway's cyborg is the refusal to be decreed. Her later slogan, "make kin not babies," stands as the exact inversion of Gilead's program and as an unwitting gloss on Offred's lineage of the room (Chapter 9).

11.4 Ishiguro and the Failure of the Humanist Proof

Kazuo Ishiguro's *Never Let Me Go* (2005) is the most exact comparative text for this dissertation's thesis. The clones raised at Hailsham to "donate" their organs until they "complete" are encouraged to make art, which their guardians collect to prove that they have souls. The proof succeeds as argument and fails as politics: their humanity is demonstrated, and the donations continue. Ishiguro dramatizes the impotence of the humanist exception. Recognition of humanity relocates the human within the economy of use rather than releasing it from that economy, which is precisely the movement of *Institutes* 2.1.37, where the child's humanity reassigns it from fruit to capital. Like Offred, Ishiguro's narrator speaks in a register of muted acquiescence; like Gilead's, Hailsham's lexicon of harvest is euphemistic—"donation" and "completion," "Salvaging" and "Unbaby." In both novels the only party the narrator's humanity changes is the reader.

11.5 Octavia Butler and the Intersectional Correction

Octavia E. Butler's *Parable of the Sower* (1993) and *Parable of the Talents* (1998) supply what Atwood's novel lacks: a theocratic dystopia narrated by a Black woman and explicitly continuous with American slavery. In *Talents*, the Christian America movement, led by a demagogue who promises to make America great again, sanctions re-education camps in which dissidents wear electronic slave collars and children are taken from their parents and placed with Christian American families. Butler's narrator, Lauren Olamina, founds Earthseed, a religion whose first principle is that God is Change: a theology of becoming set against Gilead's theology of fixed function. Butler's "Bloodchild" (1984), in which human men on an alien world carry the larvae of their hosts within a colonial Preserve, meditates on reproductive usufruct across species and genders and unsettles the gendered assumptions on which both Gilead and its critics rely.

The genre *The Handmaid's Tale* founded—continued in Sheri S. Tepper's *The Gate to Women's Country* (1988), Naomi Alderman's *The Power* (2016), Louise Erdrich's *Future Home of the Living God* (2017), Leni Zumas's *Red Clocks* (2018), and Christina Dalcher's *Vox* (2018)—has increasingly performed the intersectional correction its founding text left undone. Erdrich's narrator, an adopted Ojibwe woman pregnant in a theocratic emergency, restores to the reproductive dystopia the Indigenous history of coerced reproduction that Atwood's Nunavit gestures toward but does not narrate.

CHAPTER TWELVE

Natality Without Issue

12

12.1 The Humanist Archive: Christine, Pico, Rousseau, Wollstonecraft, Mill

Pico della Mirandola's *Oratio de hominis dignitate* (1486) grounds human dignity in indeterminacy. God addresses Adam: *Nec certam sedem, nec propriam faciem, nec munus ullum peculiare tibi dedimus, o Adam*—we have given you, Adam, no fixed seat, no face of your own, no peculiar function, so that you may possess whatever seat, face, and function you yourself choose. Gilead is anti-Pichian with almost diagrammatic exactness. It assigns each woman a fixed seat (her posting), a proper face (the habit and the wings that frame and occlude it), and a peculiar function (*munus*). Pico's humanism is the correct antidote, but it was historically gendered: the indeterminate subject was Adam, while the discourse of the age fixed women's *munus* by nature. Christine de Pizan's *Livre de la Cité des Dames* (1405) had already answered that discourse from within humanism, building under the direction of Reason, Rectitude, and Justice an allegorical city whose women are citizens by virtue of their capacities rather than their functions: a counter-Gilead founded eight decades before Pico spoke.

The Enlightenment restated the problem as a question of education. Rousseau prescribed for Sophie, in Book V of *Émile* (1762), that *toute l'éducation des femmes doit être relative aux hommes. Leur plaire, leur être utiles*—the whole education of women must be relative to men: to please them, to be useful to them. The Red Center is Rousseau's fifth book stripped of its sentiment, a curriculum of utility. Mary Wollstonecraft's *A Vindication of the Rights of Woman* (1792) answered that women's apparent inferiority was the artefact of such an education, and that virtue without reason is servility: "I do not wish them to have power over men; but over themselves." John Stuart Mill's *The Subjection of Women* (1869), written in dialogue with Harriet Taylor Mill, completed the liberal case. "What is now called the nature of women is an eminently artificial thing," Mill wrote, and the

wife was "the actual bond-servant of her husband: no less so, as far as legal obligation goes, than slaves commonly so called." Gilead's "nature" is precisely the artificial thing Mill described, now administered by the state, and its Handmaid is the bond-servant without even the euphemism of marriage.

Yet the liberal answer theorized women's minds more fully than their wombs. It grounded dignity in reason and self-government and left the reproductive body to chance. Wollstonecraft died of puerperal fever in 1797, eleven days after giving birth to the daughter who, as Mary Shelley, would write in *Frankenstein* (1818) the founding fable of creation without a woman, the womb envy of Chapter 8 as Gothic science. The rationalist tradition defended women as reasoners and remained largely silent about them as bearers; Gilead occupies that silence.

12.2 Price and Dignity

Kant's distinction—*Im Reiche der Zwecke hat alles entweder einen Preis, oder eine Würde* (*Grundlegung*, AA 4:434), in the kingdom of ends everything has either a price or a dignity—supplies a sharper criterion. What has a price can be replaced by an equivalent; what has dignity admits none. The Handmaid is fungible, one Ofglen replacing another without remainder in the regime's accounts, while her child is honoured as irreplaceable. The exception migrates again, from mother to child. And Kant's dignity rests on rational autonomy, the very capacity the tradition, Kant's own anthropology included, doubted in women, and which Gilead denies them in practice by forbidding them to read. A feminist humanism cannot rest on dignity-as-exception or on dignity-as-reason alone. Both have been drawn across women's bodies.

12.3 Bataille: Expenditure and the Sovereignty of the Useless

Georges Bataille's "La notion de dépense" (1933) and *La Part maudite* (1949) distinguish a restricted economy of utility, production, and accumulation from a general economy in which societies must expend their surplus unproductively—in luxury, festival, mourning, games, art, war, and sexuality diverted from reproduction. Sovereignty, in Bataille's sense, is the moment subordinated to nothing, the instant that serves no end: laughter, eroticism, play. Gilead is a restricted economy totalized, converting every woman into utility, whether reproductive, domestic, or sexual-symbolic.

Offred's resistances are expenditures. She saves butter from her meals and rubs it into her skin, a luxury of the body for its own sake, and reflects that the practice sustains the belief that she will one day be touched again. After the

Commander's first summons she laughs in the wardrobe until she nearly chokes, the convulsive laughter Bataille regarded as the purest form of sovereign expenditure. She keeps a match, the gift attached to a cigarette she does not smoke, and never strikes it. She returns to Nick, after Serena Joy's arranged encounter has served its reproductive purpose, for nothing but desire. She makes puns that serve no one. Gilead answers such expenditure with death when it takes the form of desire between men: the Guardians hanged on the Wall are its verdict on desire without issue. These acts change nothing in the order of domination, and that is their point: they are the moments that cannot be converted into yield. Against Schmitt's sovereignty, the decision on the exception that founds Gilead, stands Bataille's, the useless instant Gilead cannot use. Bataille gendered his sovereignty as virile transgression; this study recasts it as infructuousness. The Handmaid's sovereignty is not the breaking of a law but the bearing of nothing.

12.4 Initium ut Esset: Arendt Reread

Arendt grounded the capacity for action in natality: each birth inserts into the world a newcomer capable of beginning something new. She closed *The Origins of Totalitarianism* with Augustine's sentence, *Initium ut esset homo creatus est*, "that a beginning be made, man was created" (*De Civitate Dei* XII.21). Arendt's natality is political: not the event of being born but the capacity to begin that birth confers. Gilead collapses the distinction she laboured to maintain. It seizes natality in the biological sense and extinguishes it in the political sense; the Handmaid produces beginnings she may not begin. Mary O'Brien faulted political philosophy for its silence about reproductive consciousness (1981). Gilead's horror is the opposite of silence: reproduction made the whole of politics.

This dissertation therefore proposes the concept of *natality without issue*. "Issue" carries two senses, the legal and the narrative: offspring, as when one dies without issue, and outcome. Natality without issue is the capacity to begin that yields no offspring and guarantees no outcome, and it belongs equally to those who bear, those who cannot, and those who will not. Offred's tale is its exemplary instance. It is an *initium*; it is addressed rather than delivered; it ends with a step into a vehicle that may carry her to darkness or to light, a destination the narrator cannot resolve; its order is conjectural, its author unnamed, its title assigned by others. It produces no issue that regime or archive can claim without remainder.

12.5 Remainder, Not Remnant

Agamben's *Quel che resta di Auschwitz* (1998) and *Il tempo che resta* (2000) theorize the remnant—Paul's *leimma*, "a remnant according to the election of grace" (Romans 11:5)—as the non-coincidence of a people with itself, and the witness as one who testifies to a lacuna, to the impossibility of bearing witness for the drowned. The infructuous remainder differs in kind. Agamben's remnant is a lack: what survives destruction as a fragment and testifies to an absence. The remainder is a surplus: what persists unconsumed after every extraction, the part of a person that no use exhausts. Offred's name, her laughter, her puns, her desire, her address to "you" are residues, not ruins.

12.6 Seven Theses Toward an Infructuous Humanism

I. A person is not the sum of her yields. Any jurisprudence that disaggregates persons into substance, use, and fruit has already taken the decisive step toward Gilead, whatever protection it affords the substance.

II. Dignity cannot be founded on an exception that leaves the economy of fruit intact. Exceptions migrate: from mother to child, from child to capital, from voice to archive.

III. The ground of dignity is the remainder: what in a person cannot be converted into yield—play, laughter, desire without issue, the withheld name, the address to an absent other.

IV. Natality must be decoupled from parturition. The capacity to begin belongs equally to those who bear, those who cannot, and those who will not.

V. Testimony is not fruit. The listener's obligation is to return a story to the one whose story it is, as Amalia returned Emilia's, not to harvest it.

VI. Kinship is not issue. Lineages of the room, transmissions among non-kin, are as constitutive of a human world as lineages of blood.

VII. A feminist humanism must be infructuous in its own practice. Criticism that converts testimony into specimen repeats the Symposium; this study has quoted the law and paraphrased the witness, a practice that began as a copyright constraint and is kept here as a principle.

CODA

The Fruit After the Fact

The Testaments

Thirty-four years after the first novel, Atwood published *The Testaments* (2019), which shared the Booker Prize with Bernardine Evaristo's *Girl, Woman, Other*. Its three testimonies—Aunt Lydia's clandestine manuscript from Ardua Hall and the transcribed witness statements of two young women, one raised in Gilead and one in Canada—narrate the regime's collapse from within, and a closing set of "Historical Notes" records a Thirteenth Symposium at which Pieixoto speaks again. The sequel supplies the issue the first novel withheld: Offred's daughters survive and are reunited with their mother, and Gilead falls in part through their courage. From the standpoint of this study, the sequel partly re-fructifies the remainder. It converts natality without issue into issue—daughters, outcome, history—and redeems the grey zone by revealing Lydia's collaboration as sabotage. Readers may welcome the consolation; the theory must note what consolation costs. The first novel's ethical force lay in the remainder's refusal to become yield.

The Cloak

The Hulu serial (2017–2025) made the red cloak and white bonnet an international iconography. Activists wore the costume in the Texas Senate in 2017, in the Argentine and Irish abortion campaigns of 2018, at the Kavanaugh confirmation hearings that year, in Poland's protests against abortion restrictions, and in demonstrations following *Dobbs v. Jackson Women's Health Organization* (2022). Supporters describe the costume as a precise, silent semiotics of reproductive coercion; critics, including many who oppose abortion, regard the analogy between democratic legislation and Gilead's theocracy as hyperbolic. The same sign entered commerce: a retailer's "sexy" Handmaid Halloween costume was withdrawn in 2018 after public outcry. The cloak is the novel's most fruitful sign, harvested by markets and reappropriated by movements alike—a semiotic usufruct of the tale. This study's distinction applies to its uses: a sign is used in Amalia's manner when it returns a story to the women whose story it is, and in Pieixoto's when it converts their story into yield.

The Jurisprudence of Surrogacy

The usufructuary imagination is not confined to fiction. In *In re Baby M* (New Jersey, 1988), the state supreme court held a traditional surrogacy contract void as contrary to public policy, restored the birth mother's parental status, and awarded custody to the commissioning father on the child's best interests. In *Johnson v. Calvert* (California, 1993), a gestational carrier who bore an embryo created from the commissioning couple's gametes was held not to be the legal mother: where genetics and gestation diverge, the court reasoned, the woman who intended to bring about the child's birth is its natural mother. Commentators, Dorothy Roberts among them, observed that the carrier was a Black woman whose claim the opinion framed in terms that echoed older hierarchies. Between *Baby M* and *Johnson*, American law oscillates between *partus sequitur ventrem* and what might be called *partus sequitur intentionem*. India, which had become a hub of transnational commercial surrogacy, closed it to foreign commissioning parents in 2015 and prohibited commercial surrogacy altogether under the Surrogacy (Regulation) Act 2021. Sophie Lewis's *Full Surrogacy Now* (2019) argues that gestation is labour, criticizes anti-surrogacy rhetoric that renders actual surrogate workers as victims without agency, and calls for a collectivized "gestational commons."

The thesis does not settle whether surrogacy should be prohibited, regulated, or collectivized; on that question feminists, ethicists, and legislatures remain

deeply divided. Its logic does commit it to one claim: a rule of parentage that voids the gestating woman's claim because another party holds title by intention reproduces the structure this study calls *partus sequitur domum*, whatever the parties' consent. Defenders of intent-based parentage answer that consent, contract, and payment are exactly what distinguish surrogacy from Gilead; the study's reply is that consent mitigates domination only where the woman who bears retains a claim the law recognizes. It observes, finally, that the grammar it has reconstructed—substance, use, fruit, and the title that names the issue—remains the living syntax in which these disputes are conducted, and that Gilead's *partus sequitur domum* is less remote from contemporary law than its theocratic costume suggests.

Conclusion

Gilead blesses the fruit, and this dissertation has argued that the blessing is a legal act. The salutation exchanged by Handmaids encodes a jurisprudence reaching from the Code of Hammurabi through the *Digest* and the Virginia statute of 1662 to Kant's *Rechtslehre*, in which persons are disaggregated into substance, use, and yield, and in which title to the issue is the decisive stake. Part One reconstructed that genealogy and identified within it the humanist exception, by which the human being is declared too dignified to be fruit and is thereby reassigned as capital; because the exception is drawn across the reproductive female body, that body is the boundary-object of the humanist tradition. Part Two traced the political economy of yield through Swift, Marx, Mies, and Federici, and the kinship economy of exchange through Engels, Rubin, Irigaray, Pateman, and Dworkin, culminating in the inversion of Spillers's grammar: Papa's baby, Papa's maybe. Part Three showed how Gilead produces the Handmaid—biopolitically, performatively, sacrificially—and how its prohibitions confess the desires they forbid. Part Four demonstrated that the novel's form repeats its content: the "Historical Notes" are a testimonial usufruct in which the clerk names the handmaid's issue as Rachel named Bilhah's sons. Part Five set the novel among its comparative dystopias and humanisms and proposed, against both Gilead and the humanist exception, an ethics of the infructuous remainder and a concept of natality without issue.

Three contributions follow. Philologically, the study has shown that Gilead's liturgical vocabulary—*ancilla*, *fructus*, *venter*—is also a juridical vocabulary, so that the regime's theology and its property law are a single discourse. Theoretically, it has identified the usufruct, rather than chattel slavery or discipline alone, as the legal form that most precisely describes reproductive domination, and has shown that the same form governs the archive's relation to testimony. Ethically, it has proposed a humanism grounded neither in what persons yield nor in what they are exempted from yielding, but in what remains of them after every yield has been taken.

The limits are equally clear. The novel's racial elisions are not incidental; they are the condition of its horror, which is the horror of an exemption revoked. A

humanism of the remainder must therefore be tested where the remainder has been most violently denied—in the archives of slavery, of colonial and coerced sterilization, and of transnational gestational labour—rather than only where it has been threatened. Future research might extend the usufructuary analysis to the jurisprudence of embryos and frozen gametes, to the data economies that now harvest reproductive information, and to the legal status of the wombs that, in every generation, the powerful have sought to hold in use.

Gilead's women were taught to bless the fruit. The novel, at its deepest level, blesses the remainder.

Select Bibliography

Dates are of first publication. Entries were compiled without database verification and should be checked against the editions consulted before submission.

PRIMARY TEXTS

Atwood, Margaret. *The Handmaid's Tale*. Toronto: McClelland and Stewart, 1985.

Atwood, Margaret. *The Testaments*. 2019.

Atwood, Margaret. *Survival: A Thematic Guide to Canadian Literature*. 1972.

Atwood, Margaret. "Half-Hanged Mary." In *Morning in the Burned House*. 1995.

Atwood, Margaret. "Orwell and Me." *The Guardian*, 2003.

Atwood, Margaret. "Margaret Atwood on What 'The Handmaid's Tale' Means in the Age of Trump." *The New York Times*, March 2017.

SCRIPTURAL, ANCIENT, AND JURIDICAL SOURCES

The Holy Bible, Authorized (King James) Version. 1611.

Biblia Sacra iuxta Vulgatam Versionem.

Aquinas, Thomas. *Summa Theologiae*. 1265–74.

Augustine. *De Civitate Dei*. 413–26.

Cicero. *De Finibus Bonorum et Malorum*; *De Natura Deorum*. 45 BCE.

Euripides. *Bacchae*. 405 BCE.

Gaius. *Institutiones*. c. 161 CE.

Justinian. *Digesta*; *Institutiones*. 533.

Roth, Martha T., trans. *Law Collections from Mesopotamia and Asia Minor*. 1995 (Laws of Hammurabi).

Speiser, E. A. *Genesis*. Anchor Bible. 1964.

Thompson, Thomas L. *The Historicity of the Patriarchal Narratives*. 1974.

Van Seters, John. *Abraham in History and Tradition*. 1975.

CASES AND STATUTES

Virginia General Assembly. Act XII, December 1662. In William Waller Hening, ed., *The Statutes at Large … of Virginia*, vol. 2. 1823.

American Booksellers Association v. Hudnut, 771 F.2d 323 (7th Cir. 1985).

In re Baby M, 109 N.J. 396 (1988).

Johnson v. Calvert, 5 Cal. 4th 84 (1993).

Surrogacy (Regulation) Act, 2021 (India).

Dobbs v. Jackson Women's Health Organization, 597 U.S. 215 (2022).

EARLY MODERN AND MODERN SOURCES

Benjamin, Walter. "Über den Begriff der Geschichte." 1940.

Bentham, Jeremy. *Panopticon; or, The Inspection-House*. 1791.

Blackstone, William. *Commentaries on the Laws of England*. 1765–69.

Brontë, Charlotte. *Jane Eyre*. 1847.

Chaucer, Geoffrey. *The Canterbury Tales*. c. 1387–1400.

Christine de Pizan. *Le Livre de la Cité des Dames*. 1405.

Douglass, Frederick. *Narrative of the Life of Frederick Douglass, an American Slave*. 1845.

Engels, Friedrich. *Der Ursprung der Familie, des Privateigentums und des Staats*. 1884.

Freud, Sigmund. *Totem und Tabu*. 1913; "Einige psychische Folgen des anatomischen Geschlechtsunterschieds." 1925.

Gilman, Charlotte Perkins. "The Yellow Wallpaper." 1892; *Herland*. 1915.

Hawthorne, Nathaniel. *The Scarlet Letter*. 1850.

Hegel, G. W. F. *Phänomenologie des Geistes*. 1807.

Hobbes, Thomas. *Leviathan*. 1651.

Horney, Karen. "Flucht aus der Weiblichkeit." 1926.

Jacobs, Harriet. *Incidents in the Life of a Slave Girl*. 1861. Ed. Jean Fagan Yellin, 1987.

Jefferson, Thomas. Letter to John Wayles Eppes, 30 June 1820.

Kant, Immanuel. *Grundlegung zur Metaphysik der Sitten*. 1785; *Die Metaphysik der Sitten*. 1797.

Marx, Karl. *Ökonomisch-philosophische Manuskripte*. 1844; *Das Kapital*, vol. 1. 1867; *Kritik des Gothaer Programms*. 1875.

Mather, Cotton. *Magnalia Christi Americana*. 1702.

Mauss, Marcel. *Essai sur le don*. 1925.

Mill, John Stuart. *The Subjection of Women*. 1869.

Petty, William. *Political Arithmetick*. 1690.

Pico della Mirandola, Giovanni. *Oratio de hominis dignitate*. 1486.

Rousseau, Jean-Jacques. *Émile, ou De l'éducation*. 1762.

Schmitt, Carl. *Politische Theologie*. 1922.

Shelley, Mary. *Frankenstein*. 1818.

Swift, Jonathan. *A Modest Proposal*. 1729.

Weber, Max. *Die protestantische Ethik und der Geist des Kapitalismus*. 1904–05.

Winthrop, John. "A Model of Christian Charity." 1630; "Little Speech on Liberty." 1645.

Wollstonecraft, Mary. *A Vindication of the Rights of Woman*. 1792.

Woolf, Virginia. *A Room of One's Own*. 1929.

PHILOSOPHY, THEORY, AND FEMINIST THOUGHT

Agamben, Giorgio. *Homo Sacer*. 1995; *Quel che resta di Auschwitz*. 1998; *Il tempo che resta*. 2000; *Stato di eccezione*. 2003.

Arendt, Hannah. *The Origins of Totalitarianism*. 1951; *The Human Condition*. 1958; *Eichmann in Jerusalem*. 1963.

Austin, J. L. *How to Do Things with Words*. 1962.

Bakhtin, Mikhail. *Rabelais and His World*. 1965.

Bataille, Georges. "La notion de dépense." 1933; *La Part maudite*. 1949.

Beauvoir, Simone de. *Le Deuxième Sexe*. 1949.

Bellah, Robert N. "Civil Religion in America." 1967.

Bercovitch, Sacvan. *The American Jeremiad*. 1978.

Berlin, Isaiah. "Two Concepts of Liberty." 1958.

Bloom, Harold. *The Anxiety of Influence*. 1973.

Butler, Judith. *Gender Trouble*. 1990; *Bodies That Matter*. 1993.

Carson, Rachel. *Silent Spring*. 1962.

Cavarero, Adriana. *Tu che mi guardi, tu che mi racconti*. 1997; trans. *Relating Narratives*, 2000.

d'Eaubonne, Françoise. *Le Féminisme ou la mort*. 1974.

Debord, Guy, and Gil J. Wolman. "Mode d'emploi du détournement." 1956.

Deleuze, Gilles. "Post-scriptum sur les sociétés de contrôle." 1990.

Derrida, Jacques. "Signature événement contexte." 1972.

Dworkin, Andrea. *Right-Wing Women*. 1983.

Eagleton, Terry. *Walter Benjamin, or Towards a Revolutionary Criticism*. 1981.

Esposito, Roberto. *Immunitas*. 2002; *Bíos*. 2004.

Federici, Silvia. *Caliban and the Witch*. 2004.

Felman, Shoshana, and Dori Laub. *Testimony*. 1992.

Firestone, Shulamith. *The Dialectic of Sex*. 1970.

Foucault, Michel. *Surveiller et punir*. 1975; *Histoire de la sexualité* I: *La volonté de savoir*. 1976; *Il faut défendre la société* (lectures of 1976). 1997.

Gilbert, Sandra M., and Susan Gubar. *The Madwoman in the Attic*. 1979.

Gilligan, Carol. *In a Different Voice*. 1982.

Girard, René. *La Violence et le sacré*. 1972; *Le Bouc émissaire*. 1982.

Gutiérrez, Gustavo. *Teología de la liberación*. 1971.

Haraway, Donna. "A Manifesto for Cyborgs." 1985; *Staying with the Trouble*. 2016.

Hartman, Saidiya. "Venus in Two Acts." *Small Axe* 26 (2008).

Harvey, David. *The New Imperialism*. 2003.

Irigaray, Luce. *Ce sexe qui n'en est pas un*. 1977.

Kandiyoti, Deniz. "Bargaining with Patriarchy." 1988.

Lacan, Jacques. *Écrits*. 1966.

Levi, Primo. *I sommersi e i salvati*. 1986.

Lévi-Strauss, Claude. *Les Structures élémentaires de la parenté*. 1949.

Lewis, Sophie. *Full Surrogacy Now*. 2019.

Mbembe, Achille. "Necropolitics." *Public Culture* 15 (2003).

Merchant, Carolyn. *The Death of Nature*. 1980.

Mies, Maria. *Patriarchy and Accumulation on a World Scale*. 1986.

Miller, Perry. *The New England Mind*. 1939, 1953; *Errand into the Wilderness*. 1956.

Morgan, Jennifer L. *Laboring Women*. 2004; "Partus sequitur ventrem: Law, Race, and Reproduction in Colonial Slavery." *Small Axe* 22 (2018).

O'Brien, Mary. *The Politics of Reproduction*. 1981.

Pateman, Carole. *The Sexual Contract*. 1988.

Pettit, Philip. *Republicanism*. 1997.

Plumwood, Val. *Feminism and the Mastery of Nature*. 1993.

Roberts, Dorothy. *Killing the Black Body*. 1997.

Ross, Loretta J., and Rickie Solinger. *Reproductive Justice: An Introduction*. 2017.

Rubin, Gayle. "The Traffic in Women: Notes on the 'Political Economy' of Sex." 1975.

Ruddick, Sara. "Maternal Thinking." 1980.

Sekora, John. "Black Message/White Envelope." 1987.

Skinner, Quentin. *Liberty before Liberalism*. 1998.

Spillers, Hortense J. "Mama's Baby, Papa's Maybe: An American Grammar Book." *Diacritics* 17.2 (1987).

Stepto, Robert B. *From Behind the Veil*. 1979.

Trible, Phyllis. *Texts of Terror*. 1984.

Weinbaum, Alys Eve. *The Afterlife of Reproductive Slavery*. 2019.

Williams, Delores S. *Sisters in the Wilderness*. 1993.

LITERARY COMPARANDA

Alderman, Naomi. *The Power*. 2016.

Burdekin, Katharine [Murray Constantine]. *Swastika Night*. 1937; repr. Feminist Press, 1985.

Butler, Octavia E. "Bloodchild." 1984; *Parable of the Sower*. 1993; *Parable of the Talents*. 1998.

Dalcher, Christina. *Vox*. 2018.

Erdrich, Louise. *Future Home of the Living God*. 2017.

Huxley, Aldous. *Brave New World*. 1932.

Ishiguro, Kazuo. *Never Let Me Go*. 2005.

Morrison, Toni. *Beloved*. 1987.

Orwell, George. *Nineteen Eighty-Four*. 1949.

Piercy, Marge. *Woman on the Edge of Time*. 1976.

Rhys, Jean. *Wide Sargasso Sea*. 1966.

Tepper, Sheri S. *The Gate to Women's Country*. 1988.

Zamyatin, Yevgeny. *We*. Written 1920–21; English trans. 1924.

Zumas, Leni. *Red Clocks*. 2018.

CRITICISM ON ATWOOD

Baccolini, Raffaella, and Tom Moylan, eds. *Dark Horizons: Science Fiction and the Dystopian Imagination*. 2003.

Davidson, Arnold E. "Future Tense: Making History in *The Handmaid's Tale*." In *Margaret Atwood: Vision and Forms*, ed. Kathryn VanSpanckeren and Jan Garden Castro. 1988.

Grace, Dominick M. "*The Handmaid's Tale*: 'Historical Notes' and Documentary Subversion." *Science Fiction Studies* 25 (1998).

Howells, Coral Ann. *Margaret Atwood*. 1996; 2nd ed. 2005.

Howells, Coral Ann, ed. *The Cambridge Companion to Margaret Atwood*. 2006.

Kauffman, Linda. "Special Delivery: Twenty-First Century Epistolarity in *The Handmaid's Tale*." In *Writing the Female Voice*, ed. Elizabeth C. Goldsmith. 1989.

Ketterer, David. "Margaret Atwood's *The Handmaid's Tale*: A Contextual Dystopia." *Science Fiction Studies* 16 (1989).

Malak, Amin. "Margaret Atwood's *The Handmaid's Tale* and the Dystopian Tradition." *Canadian Literature* 112 (1987).

McCarthy, Mary. "Breeders, Wives and Unwomen." *New York Times Book Review*, 9 February 1986.

Moylan, Tom. *Scraps of the Untainted Sky: Science Fiction, Utopia, Dystopia*. 2000.

Neuman, Shirley. "'Just a Backlash': Margaret Atwood, Feminism, and *The Handmaid's Tale*." *University of Toronto Quarterly* 75 (2006).

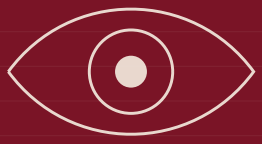
Stein, Karen F. "Margaret Atwood's *The Handmaid's Tale*: Scheherazade in Dystopia." *University of Toronto Quarterly* 61 (1991).

Wilson, Sharon Rose. *Margaret Atwood's Fairy-Tale Sexual Politics*. 1993.

Yellin, Jean Fagan. "Written by Herself: Harriet Jacobs' Slave Narrative." *American Literature* 53 (1981).

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